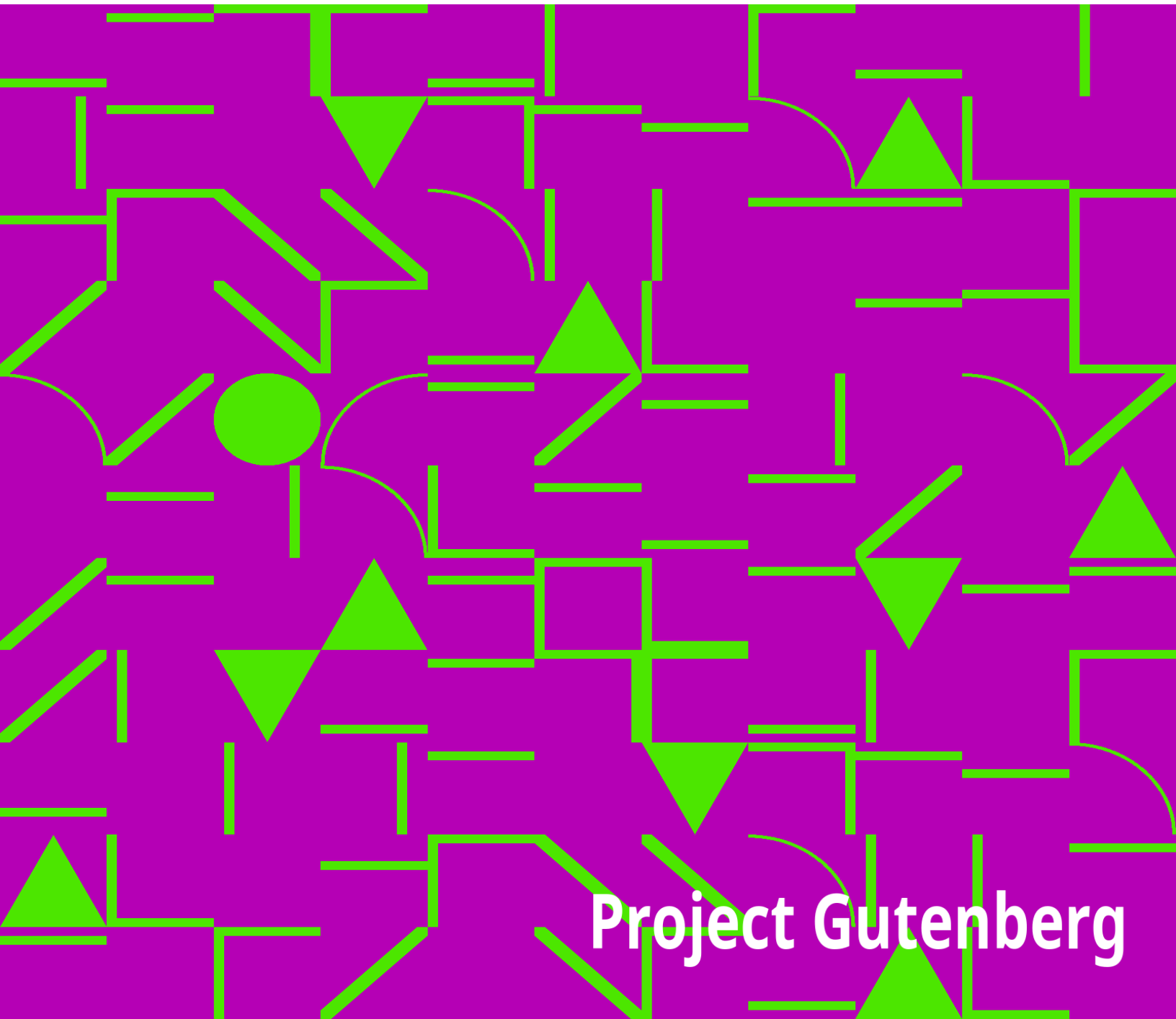


Report of the Special Committee on Moral Delinquency in Children and Adolescents

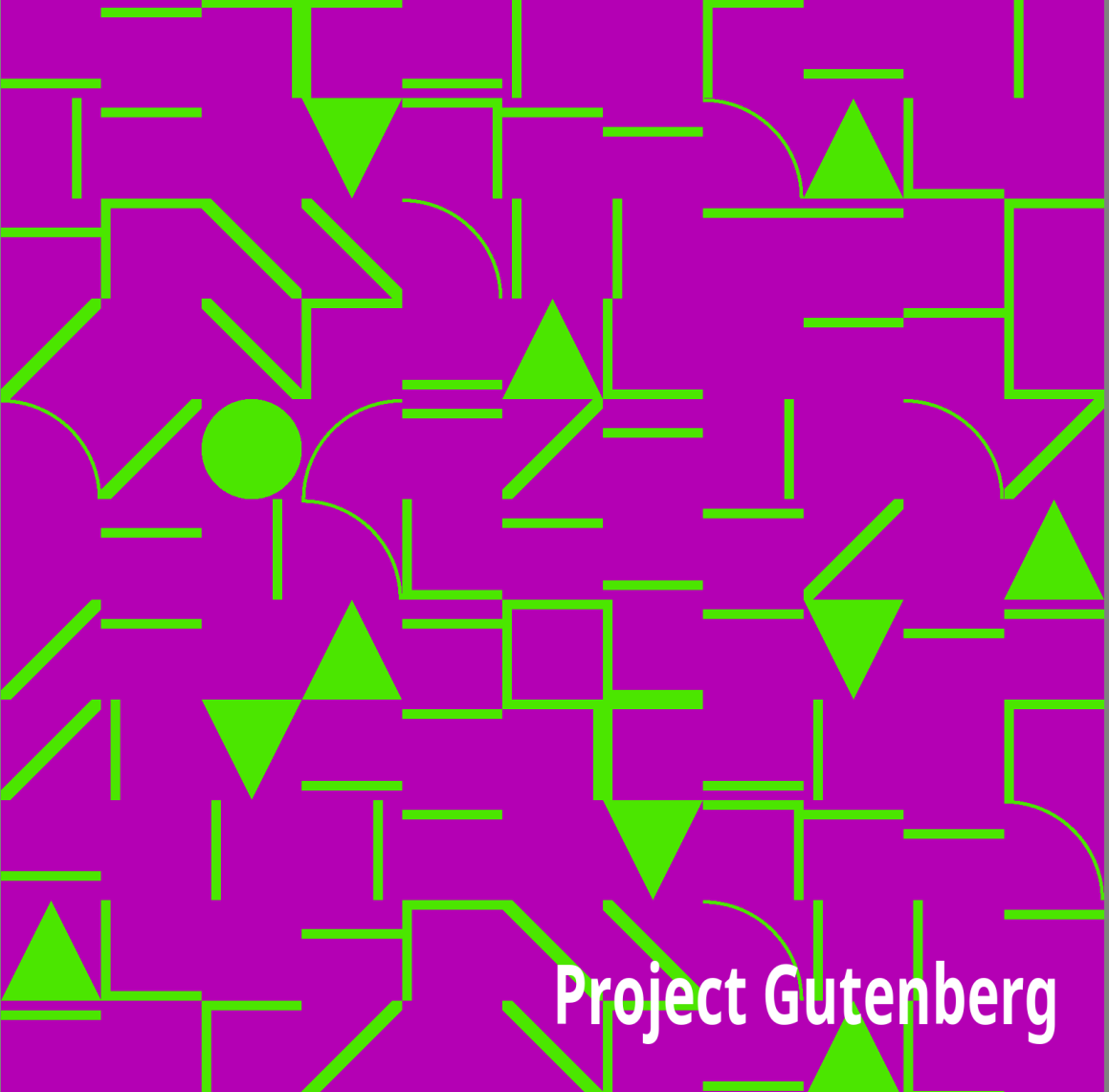
New Zealand. Special Committee on Moral



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Report of the Special Committee on Moral Delinquency in Children and Adolescents

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CHILDREN AND ADOLESCENTS ***

1954

NEW ZEALAND

REPORT OF THE SPECIAL COMMITTEE

ON

MORAL DELINQUENCY

IN

**CHILDREN AND
ADOLESCENTS**

Laid upon the Table of the House of Representatives by Leave

**BY AUTHORITY: R.E. OWEN, GOVERNMENT PRINTER,
WELLINGTON.—1954**

20

September 1954.

The Right Honourable the Prime Minister,
Wellington.

Sir,

Having taking into consideration the matters referred to us on 23 July 1954, we submit herewith the report and recommendations upon which we are all agreed.

Accompanying the report, for purposes of record, are four volumes containing the evidence of the witnesses who appeared before us and a large file of the submissions which were made in writing.

We have the honour to be, Sir,

Your Obedient Servants,

O.C. MAZENGARB, Chairman.

R.A. BLOODWORTH

J. LEGGAT

G.L. MCLEOD } Members.

Lucy V. O'BRIEN

J.S. SOMERVILLE

F.N. STACE

The Special Committee on Moral Delinquency in Children and Adolescents

CHAIRMAN

Dr OSWALD CHETTLER MAZENGARB, Q.C.

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Dr GORDON LOGIE MCLEOD, LL.B. (N.Z.), M.B.Ch.B. (N.Z.), D.P.H. (Eng.),
Director, Division of Child Hygiene, Department of Health.

Mrs LUCY VERONICA O'BRIEN, *Vice-President of Women's Auxiliary of Inter-Church Council on Public Affairs: Arch-Diocesan President, Catholic Women's League*.

Rev. JOHN SPENSER SOMERVILLE, M.C., M.A., *Chairman of the Inter-Church Council on Public Affairs*.

Mr FRANCIS NIGEL STACE, B.E.(Elec.-Mech.), B.E.(Mech), *President, N.Z. Junior Chamber of Commerce*.

SECRETARY

LEN JOSEPH GREENBERG, O.B.E., J.P.

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I. Preliminary Observations

(1) Sensational Press Reports

In the second week of July 1954 various newspapers throughout the Dominion featured reports of proceedings in the Magistrate's Court at Lower Hutt against youths charged with indecent assault upon, or carnal knowledge of, girls under 16 years of age.

The prosecuting officer was reported as saying that:

The police investigations revealed a shocking degree of immoral conduct which spread into sexual orgies perpetrated in several private homes during the absence of parents, and in several second rate Hutt Valley theatres, where familiarity between youths and girls was rife and commonplace.

He also stated that:

... in many cases the children came from excellent homes.

A few weeks previously reports had appeared in the press of statements made by a Child Welfare Officer and a Stipendiary Magistrate that juvenile delinquency (meaning delinquency in general and not only sexual delinquency) had more than doubled in recent years, and that in many cases the offenders came from:

... materially good homes where they are well provided for.

Such statements naturally provoked a good deal of private and public comment throughout the Dominion. The anxiety of parents deepened, and one leading newspaper asserted editorially that:

It is probably quite safe to assert that nothing that has occurred in the Dominion for a long time has caused so much public dismay and so much private worry as the disclosure of moral delinquency among children and adolescents.

There is room for difference of opinion as to whether or not the ensuing public discussion of sexual offending was desirable. On the one hand it provoked many conversations on the subject between children themselves and a noticeable desire to purchase newspapers on the way to and from school. On the other hand the focusing of attention on the existence of the peril to school children caused many parents, temporarily at any rate, to take a greater interest in the training and care of their children than they might otherwise have taken; it caused some heads of schools to arrange for sex instruction; and it also resulted in a public demand that something should be done to bring about a better state of morality in the community.

Following hard upon the newspaper reports of these cases in the Hutt Valley there was the news that two girls, each aged about 16 years had been arrested in Christchurch on a charge of murdering the mother of one of them. It soon became widely known (and this fact was established at their subsequent trial) that these girls were abnormally homosexual in behaviour.

There were also published in the press extracts from the annual report of the Justice Department to the effect that sexual crime in New Zealand was, per head of population, half as much again as the sexual crime in England and Wales. The reasons why the Committee does not accept this statement at its face value are stated later under [Section IV \(2\)](#).

(2) Press Reports from Overseas

In view of the fact that the happenings in the Hutt Valley were reported in all New Zealand newspapers, and by many newspapers in Australia and Great Britain, the Committee points out that the increase of sexual delinquency is not confined to any one district or any one country.

It cannot be too strongly asserted that the great majority of the young people of the Hutt Valley are as healthy-minded and as well behaved as those in other districts, whether in New Zealand or elsewhere. It just happened that, through the voluntary confession of one girl in Petone, many cases were immediately brought to the knowledge of the police.

In the absence of comparable statistics from other countries, the Committee can merely quote from some of the reports received in New Zealand at about the same time that the Hutt Valley cases were reported.

(a) *England*

In Monmouthshire last year there was an increase of 88 per cent in sexual offences. The biggest increases recorded were for indecent assault on females—132 in 1953, compared with 75 in 1952—and for offences against girls under 16 years of age. In his annual report the Chief Constable states that this shocking record is a further indication of the general lowering of moral standards ...—*The "Police Review" (London), 19 February 1954.*

(b) *New South Wales*

POLICE UNCOVER WILD TEENAGE SEX ORGIES

Detectives have uncovered evidence of an amazing sex cult in which a bodgie "high priest" and a number of pretty teenagers indulged in wild orgies in a Sydney suburb.

It is alleged that the "high priest" made the girls participate in lewd rituals, swear a profane oath on "the bodgies' bible" and worship at a "bodgies' altar".

Following these sensational allegations, four men were arrested. Police expect to arrest another seven. Disappearance of the 15-year-old daughter of a respected Erskineville family started the police investigation which uncovered the sex cult. Both the girl and the "high priest" undressed, and, as she lay on a bed, he compelled her to engage in grossly obscene acts with him.

Then, while the "high priest" performed a gross act of indecency, the girl swore the "widgies' oath" on the "bodgies' bible".—*Sydney "Truth" 27 June 1954.*

(c) *South Australia*

ADELAIDE POLICE SEIZE TEENAGERS IN SWIFT RAIDS

In a series of lightning raids Port Adelaide police have arrested six teenagers who they claim are members of a sex cult. Vice Squad detectives

say the cult indulged in sex and drug parties. The Port Adelaide Police Chief Inspector, G.E. Mensfort, said that when the cases came to Court he suspected revelations similar to those in the Hutt Valley, which recently shocked New Zealand. A number of teenage youths have already appeared in Port Adelaide Police and Juvenile Courts on carnal knowledge charges ... —*Telegram in the "Dominion", 30 July 1954.*

(d) *London*

MANY GIRLS IN BAD COMPANY

One black spot in an otherwise more optimistic report by the Police Commissioner on crime in London is a disturbing increase in the number of 17-and 18-year-old girls who are coming under the notice of policewomen on their beat, says the *Daily Mirror*.—*N.Z.P.A. to "Evening Post", 2 September 1954.*

(3) A World-wide Problem

There have been waves of sexual crime in various countries at various times.

Juvenile delinquency itself has been the subject of much research (especially in the United States) during the past fifty years. But although such offences as indecent exposure and sexual assault by juniors have been included in published figures, no special mention has been found by this Committee of the aspect of sexual delinquency now being discussed in New Zealand. What is entirely new in New Zealand (and probably in other places, too) is the attitude of mind of some young people to sexual indulgence with one another, their planning and organization of it, and their assumption that when they consent together they are not doing anything wrong.

Clergymen and publicists in various parts of the world have been declaiming about illicit sexual practices and their effects on young people, but this is the first time that any Government has set up a Committee to sift the available data on sexual misbehaviour with a view to finding the cause and suggesting a remedy.

While this report was being typed there appeared in the local newspapers the following telegram despatched from London on September 14:

INQUIRY INTO VICE WAVE IN BRITAIN

A Government committee, including three women, is to open tomorrow a searching probe into Britain's homosexuals and prostitutes, to decide whether the country's vice laws should be changed.

The Government's decision to set up the committee followed public alarm at the vice wave in Britain, highlighted by a steep increase in homosexual offences.

The Home Secretary, Sir David Maxwell Fyfe, has charged the committee with considering the law and practice relating to homosexual offences and the treatment of persons convicted of such offences, and offences against the criminal law in connection with prostitution and solicitation for immoral purposes. According to the police, prostitutes in London alone have soared to a record of more than 10,000. Convictions for sexual offences exceed 5,000 a year, compared with the immediate pre-war total of 2,300. The figures for male homosexual offences have bounded even more sharply.

The extent of juvenile immorality in New Zealand may have been greatly magnified abroad. If the good name of this Dominion has been sullied by these reports, the Committee hopes that any damage may be repaired by setting out the facts in their true perspective and by demonstrating that we can, and will, do something in the interests of morality which may also give a lead to other countries.

II. Order of Reference and Procedure Followed

On 23 July 1954 a Special Committee was appointed by the Government with the following Order of Reference:

To inquire into and to report upon conditions and influences that tend to undermine standards of sexual morality of children and adolescents in New Zealand, and the extent to which such conditions and influences are operative, and to make recommendations to the Government for positive action by both public and private agencies, or otherwise.

The Committee held its first meeting on Tuesday, 27 July, to determine points of procedure and to make arrangements to hear all who desired to make submissions. There were placed before the Committee files of letters which had been written to Ministers of the Crown, and hundreds of newspaper clippings, relating to this topic. Some days were occupied in the sorting and reading of this material in anticipation of the task which lay ahead.

The Committee commenced the hearing of evidence at Wellington on Tuesday, 3 August. It sat in Christchurch for the convenience of people in the South Island on 31 August and 1 September, and in Auckland from 6 September to 10 September.

Altogether 145 persons (18 on more than one occasion), appearing either in a representative capacity or as private individuals, were heard. In addition, 203 written submissions were made by interested organizations and private persons, and a large volume of relevant correspondence, addressed direct to the Committee, was considered. A list of the persons who appeared before the Committee and of the organizations or societies which made either written or oral representations is attached.

It should here be observed that the Committee, not having the powers of a Commission of Inquiry, could not summon witnesses before it. All officers of the Crown, and all public agencies from whom information was sought, were helpful. Much of the evidence, however, was secondary or hearsay

evidence. The Committee had not the power to trace some of the stated facts back to their source.

It was thought undesirable to interview any of the children involved in recent happenings. Reliance had to be placed on information regarding each individual made available by the police and Child Welfare Officers, and, in some cases, by the heads of their respective schools. Similarly, there was much secondary evidence of indecent behaviour and of other facts said to have been derived from reliable sources. The absence of direct evidence on some of these matters, however, did not prevent the Committee from looking at the problem in its broad general aspects, and from reaching conclusions which could not be affected by a closer scrutiny of some of the individual matters narrated to the Committee.

III. Narrative

(1) The Hutt Valley Cases

Before proceeding to examine the extent of sexual laxity among children and adolescents it is convenient to narrate the factual happenings which caused this problem to assume such large proportions in the public mind in July and August last.

On the 20th day of June 1954 information was sought from the police concerning the whereabouts of a girl 15½ years of age who was missing from her home at Petone. A few hours later this girl called at the Petone Police Station. She stated that, being unhappy at home with her stepfather, she had, since the previous Christmas, been a member of what she called a "Milk Bar Gang" which (in her own words) met "mostly for sex purposes"; she had "become tired of the sex life", was worried about the future of its younger members, and desired the police to break up the gang. She gave the names of other members of the gang to the police. By interviewing persons named by this girl, and then interviewing others whom they in turn named, the police were able, without difficulty, to obtain admissions and evidence of sexual misconduct by 65 children.

The procedure followed was for the parents to be visited at their residences by a constable in plain clothes, told the nature of the inquiry, and informed of the desire of the police to interview the children at the police station. When a parent and child attended at the time appointed the parent was informed that, either through a sense of shame or fear of the parent, the child might not make a full disclosure of the facts known to her. Some parents consented to their children being interviewed alone; others desired, and were allowed, to remain for the questioning. After each interview the parents were permitted to read the statements of their children and to sign them before the children themselves were asked to sign.

The disclosures thus made, immediately recalled certain similar occurrences in the same district during October/November 1952. It speedily became apparent that the 1954 situation was much more serious in that there were

approximately three times as many children dealt with and that three of the children had been involved in the earlier trouble.

For purposes of comparison the Hutt Valley cases are set out as follows:

	1952	1954
Girls involved	6	17
Girls pregnant	2	...
Boys involved	11	37
Boys over eighteen	...	5
Charges laid	61	107
Committed to care of State	3 girls	5 girls 1 boy
Placed under supervision	3 girls 7 boys	4 girls 7 boys
Admitted to probation	1 boy	6 boys
Admonished and discharged or otherwise dealt with	3	30
Dismissed in Children's Court	...	3
Acquitted in Magistrate's Court	...	1
Acquitted in Supreme Court	...	3

(One boy appeared in both Supreme Court and Magistrate's Court; thus showing 60 persons dealt with.)

(2) Cases in Other Districts

It cannot be supposed that sexual misbehaviour was confined to the Hutt district. Similar environmental conditions obtain in other districts. It was reliably stated in evidence at Wellington that if a girl elsewhere were to carry her story to the police similar revelations would be made there.

In Auckland matters came to the knowledge of the Committee which do cause grave concern. Here again the Committee was not engaged on a fact-finding mission, but was seeking to evaluate the evidence in a broad way.

It appears that, a few weeks before the Hutt cases were reported, the headmaster of an intermediate school informed the police of a case of theft

of money by a schoolboy who was found to have £22 in his wallet. In the course of their inquiries into this the police were started on a train of investigation into sexual practices of children on their way home from school, at the homes of parents, and elsewhere. As a result, about 40 boys and girls in the 12—15-year-old group (but including also a girl of 9 years) were implicated. In addition to this, there were two cases before the Court in which several girls had given evidence of their agreement to sexual intercourse with older men. One of the accused men has recently been sentenced to a term of imprisonment, while the other is still awaiting trial. As this latter case, and also a charge of murder against a boy aged 14, are still *sub judice*, the Committee is unable to comment on any of the factors involved.

This much may, however, be said that, from the police, welfare officers, a headmaster, and social workers in Auckland, the Committee learned of an accumulation of sordid happenings occurring within a short space of time which people who regard themselves as men of the world could scarcely believe possible in this Dominion.

No submissions were presented to the Committee that sexual offending by juveniles in the South Island had increased to any alarming extent. Such cases as were mentioned to the Committee followed previously recognized patterns.

IV. Has Juvenile Immorality Increased?

(1) Difficulties of Comparison in Absence of Statistics

In seeking to ascertain whether immorality among children and adolescents has increased or is increasing it should be pointed out that there are not any statistics available either in New Zealand or elsewhere from which reliable guidance may be obtained. Sexual immorality is, by its very nature, a clandestine vice. Any available figures can comprise only such things as detected offences against the law, or registration of ex-nuptial births, or births which have resulted from pre-marital intercourse. Figures are not available concerning immoral acts which do not become the subject of a criminal charge.

Charges of unlawful carnal knowledge or indecent assault arise, for the most part, from complaints made by females. From feelings of chivalry or other reasons it is not in the nature of the male to inform on the female. The common experience is that a charge of sexual impropriety comes from information supplied by the female. So long as a girl is prepared to be silent, the offenders remain unknown. As with older people, so also with children.

Whether sexual laxity has been increasing must be a matter largely of impression based, perhaps, upon inference from certain known facts. On this matter there is room for a wide divergence of opinion. If policemen, teachers, or social workers in the Hutt district had been asked in June of 1954 whether immorality had increased there, they would probably have replied that the wave of 1952 had receded and matters were back to normal. Yet a month later that district had achieved an unenviable, and even unfair, reputation in this respect.

Sad to relate, the cases in respect of which the police took action in the Hutt do not represent the full extent of known sexual immorality among juveniles there. This is shown by the following pieces of evidence:

(a) The office bearers of one Church gave to the Committee particulars of several recent cases which had come to their notice in the ordinary course of their social welfare work (two of them girls who had become pregnant before their sixteenth birthdays). These were cases which had not been investigated by the police. It was also the conclusion of these Church officers that the cases which had been revealed to them were far outnumbered by those which were not so revealed.

(b) It was quite obvious to the police officials who made the investigations in July that no useful purpose would be served by extending their inquiries further.

(2) Unreliability of Available Statistics for Comparative Purposes

The previous section was written to show the difficulty of obtaining a comparison between vice at one period and that at another. This section is to indicate the difficulties which arise in making comparisons (even when figures are available) between different sections of the people at different times and between different groups of people.

(a) Sexual Crime Among Adults

No inference can be drawn from any comparisons between sexual crime of adults and sexual misbehaviour among children. The Committee did, however, examine the statistics of sexual crime in New Zealand to see if there was any marked increase which might throw light upon the conduct of children. From the annual reports which had been submitted by succeeding Commissioners of Police it collated the figures of sexual crime. The table as prepared is set out in Appendix A to this report. A perusal of that table will show that the increase of sexual crime in the years 1920-1953 is not any greater than might reasonably have been expected having regard to the increase in population. In other words, the rate has remained constant. But the great increase in the number of indecent assaults on females (from 175 in 1952 to 311 in 1953) did call for special investigation. At the request of the Committee, these figures were broken down into the several districts in which the crimes had occurred and, as a result, it appeared that there had been an astonishingly big increase in the Auckland district. The Committee has had two separate explanations of this. In the first place, it was explained that the apparent increase was due to a change in the method of compiling

the returns in Auckland. On reference to Auckland officials the Committee was informed that the method of compilation had not been changed. Whether or not this type of crime increased substantially throughout the Dominion in one year must, for the present, remain undetermined.

(b) Statistics of Juvenile Delinquency

The figures compiled for the Committee by the Superintendent of the Child Welfare Division show that:

(i) There was a substantial increase in juvenile delinquency during the Second World War.

(ii) After the war was over, the rate settled down to something like the pre-war rate.

The following is a fair selection of these figures (alternate years being taken):

<i>Year</i>	<i>Number of Offences and Complaints of Children Out of Control, etc.</i>	<i>Rate per 10,000 of Juvenile Population</i>	
		<i>7-17 years</i>	<i>10-17 years</i>
1934	1,653	53	73
1936	1,786	57	79
1938	2,447	77	105
1940	2,464	79	107
1942	2,421	79	107
1944	2,493	84	113
1946	1,786	60	83
1948	1,589	51	74
1950	1,464	46	66
1952	1,883	56	78
1954	2,105	56	81

In making comparisons it should be noted (as explained later) that during recent years the Department has undertaken much preventive work which

may account for a return to the pre-war rate in spite of the existence of other factors leading to an increase in delinquency.

(c) Juvenile Delinquency in Maoris and Non-Maoris

Another illustration of the care required in the use of statistics is afforded by a comparison as between Maori and non-Maori offenders in the 10—17-year-old group. (For the purpose of these figures "Maori" means of the half-blood or more).

For the year ended 31 March 1954 there were 565 Maori delinquents, or 28 per cent of the total number of juvenile delinquents. During this same period there were 1,433 non-Maori offenders, or 72 per cent of those delinquents. But the Maori offenders came from 10 per cent of the juvenile population, whereas the non-Maoris came from 90 per cent of that population. On that basis juvenile delinquency among Maoris was three and a half times that among the rest of the child inhabitants of New Zealand.

The Committee has been unable to arrange for a dissection of the figures to ascertain whether there was a bigger percentage of sexual offenders among young Maoris than among other sections of the people. A considerable portion of offences may come from factors inherent in the culture and traditions of the Maori and their difficulty in conforming to another mode of living.

(d) Children Under Control or Supervision

It is interesting to find that after the war there was a steady decline in the number of children committed to the care of the State, or placed under supervision, until the year 1953. This is shown by the following table:

<i>Year Ended Under Control 31 March or Supervision</i>	
1934	7,259
1936	7,272
1938	7,403
1940	8,043
1942	8,221

1944	8,531
1946	8,048
1948	7,267
1950	6,525
1952	6,088
1953	6,177
1954	6,283

There would have to be reservations in any inferences drawn from these figures. For instance, the decrease may have been due to extra preventive work done by welfare officers. The earlier reduction or the later increase in the number of children placed under care or supervision may have been affected by the varying recommendations of Child Welfare Officers or the decisions of Magistrates. Finally, is the slight increase from 1952 to 1954 something to cause concern?

(e) Comparison Between New Zealand and England

Almost coincidentally with the publication abroad of reports of immorality in the Hutt district and of juvenile murders in New Zealand, an extract from a brochure of the Justice Department was published. This extract was to the effect that, in relation to population, there were one and a half times as many adults convicted of sexual offences in this Dominion as there were in England and Wales. That statement results from a comparison of the figures in the two jurisdictions, but it may create a wrong impression unless it is remembered that in England only 47 per cent of the indictable offences reported to the police are "cleared up", whereas in New Zealand 64 per cent of indictable offences are "cleared up". A comparison which takes this and all other relevant factors into account could probably place this Dominion in a much more favourable light.

Whatever inferences may be drawn from the statistics presented in this report—whether juvenile immorality has increased or not—any nation is wise that, from time to time, surveys its moral health.

V. A Change of Pattern In Sexual Misbehaviour

When this inquiry was mooted all members of the Committee heard the oft-repeated comment that sexual delinquency was not new—it had been going on through the ages and always would go on. Many people also said "You cannot make people moral by Act of Parliament".

Although there is some truth in each of these statements the Committee does not feel that the matter should be dismissed in that way. First, such an attitude is not a desirable one to adopt when seeking a remedy for a social evil. Secondly, the continued existence of a vice, however far back it may be traced, is not a reason why special measures should not be used to deal with it when it assumes considerable proportions.

Intemperance and dishonesty have always been apparent. But there have been times when these vices have reared their heads in new ways and in new circumstances which have compelled action by the Legislature. The consumption of alcohol by persons in charge of motor vehicles is but one illustration of the way in which an old vice may become such a great evil in altered circumstances that stern measures have to be taken. Stealing was reprehended in the Ten Commandments, and so was covetousness. Theft was always punishable at common law; but, soon after company promotion became a feature of our commercial life in the latter part of the nineteenth century, firm action had to be taken by the Legislature to protect the public from the effects of a misleading or fraudulent prospectus.

Similarly, in this matter of improper sex behaviour among children, it is not merely its extent, but certain features in its new pattern, which command attention. These features are:

(1) Younger Groups now Affected

Immorality appears to be more prevalent now among younger groups in the community. In the Hutt, and also in Auckland, most of the cases were of boys and girls whose ages ranged from twelve to fifteen years; but some of

the young girls also associated with boys several years older than themselves.

(2) Precocity of Girls

In former times it was the custom for boys to take the initiative in seeking the company of girls; it was conventional for the girls to await any advances. Nowadays, girls do not always wait for an advance to be made to them, nor are they as reticent as they used to be in discussing intimate matters with the opposite sex. It is unfortunate that in many cases girls, by immodest conduct, have become the leaders in sexual misbehaviour and have in many cases corrupted the boys. At one school there were 17 children involved—10 of them were girls of an average age of 13.2 years and 7 boys of an average age of 15 years. Another disturbing feature is that in the case of boys more than half were committing their first offence, whereas only one-fifth of the girls were offending for the first time. The Committee has not overlooked the fact that the offending girls may themselves have been corrupted by a male in the first place. But the fact remains that four-fifths of the girls involved in the particular cases that prompted this inquiry had an admitted history of prior sexual misconduct.

The following extract from the evidence of a headmaster is impressive of this new feature:

... We have not the same worry about boys as we have about girls. The worst cases we have are girls, and it is quite clear some of them are an absolute menace. They have dragged boys into this sort of thing. In general the girls are far worse than the boys.

(3) Organization of Immorality

These immoral practices have been *organized* in a way that was not evident before. For example, a boy of 17½ years, trusted by his parents with the charge of their home, abused the trust by arranging sexual parties on three successive weekends for groups of several girls and boys. There was also the case of a girl of 14 years who invited a girl of the same age to her home during the absence of her parents for the express purpose of having intercourse^[1] with her brother aged 15. This improper use of a parent's home has also occurred in other districts.

(4) Recidivism

The second outbreak of Hutt Valley cases revealed that two boys, one girl, and one family had become involved in misbehaviour within eighteen months of their previous offences. In another district three-quarters of the boys concerned had previously been before the Court as delinquents, though not all for sexual offences.

(5) Changed Mental Attitude of Girls and Boys

Perhaps the most startling feature is the changed mental attitude of many young people towards this evil. Some offend because they crave popularity or want to do what their friends are doing. Some assert a right to do what is regarded by religion, law, and convention as wrongful. It was reported that some of the girls were either unconcerned or unashamed, and even proud, of what they had done. Some of the boys were insolent when questioned and maintained this attitude. The Committee has not overlooked the fact that in some cases this attitude may have been due to a defensive reaction.

The recent disclosures caused one headmistress of a city college to arrange for sex instruction to be given by a lady doctor to various forms. The girls were invited to submit written questions for the doctor to answer. Having read the questions, the doctor commented that she must have prepared the wrong lecture—it should have been for an older group. A transcript of the questions was produced to the Committee. They were inquiries which one would assume might be made by young women who had married or were about to marry. Whether these young girls were sincere in their questioning of the doctor, whether they wanted to exhibit advanced knowledge, or whether they were endeavouring to create a sensation, the fact remains that they had in mind aspects of sex which were well in advance of their years.

This change in the mental attitude of offending children was further exemplified by evidence that, in one series of cases in Auckland, records were kept, and there was some competition between girls concerning the number of immoral acts in which they were involved. The Committee were shocked to hear from the police that one girl claimed a total of 148 instances in her favour.

(6) Homosexuality

The Committee has read reports from Great Britain of an increase in homosexual practices there. Recent New Zealand happenings might be taken to indicate a similar increase in this country. The Committee has made no investigation of these matters, but considers it wise to remind parents that sexual misbehaviour can occur between members of the same sex.

The conclusion of the Committee is that the above pattern of immorality is of a kind which was not previously manifest in New Zealand. It cannot be dealt with on the footing that it has always been with us. The attitude of mind shown by those who have planned and organized sexual parties, and sometimes caught others within their net, is something which demands serious consideration. The subject cannot be dismissed in the light, airy way of those people who, without any adequate knowledge of the facts, have been saying that there is nothing new about the sexual misbehaviour of young people and that nothing can be done to improve matters. The situation is a serious one, and something must be done.

VI. Searching for the Cause

Many have been the views expressed as to the reasons for this immorality and the suggested remedies. After considering the evidence, after reading much literature on the subject, and weighing up all the suggested factors, the view of the Committee is that the matter is not capable of simplification by regarding any, or even all, the causes suggested and discussed below as being the main cause. In seeking to remedy the evil it must steadily be borne in mind that we have not only to deal with the immediately apparent causes. Letters to the press, letters to this Committee, and many of the submissions made reveal a failure to dig below the surface or to look beyond the factors which came immediately to the mind of the writers or those which, from personal experience, appeared to them to be the decisive or motivating factors.

The way in which the Committee approached a consideration of this problem was to distinguish between those causes which appeared to be the precipitating causes and those which it regarded as predisposing causes. The precipitating causes are those which are closely related in time or circumstance to the actual misbehaviour. The predisposing causes are those which create an emotional maladjustment in a person and thus induce a susceptibility to the precipitating cause. For instance, a semi-nude figure or a song with a double meaning will not incite a properly instructed adolescent to sexual misconduct. But if by parental neglect or failure to control a young person is predisposed to anti-social conduct, there is danger in any form of suggestiveness.

The Committee has carefully considered many suggested causes (whether precipitating or predisposing) and now sets out its views on those which merit special mention.

If, as the Committee believes, immoral behaviour should be regarded as a phase or facet of juvenile delinquency, the same influences which tend to incite other anti-social behaviour are in operation here.

Much has been written in textbooks, in journals, and in various scattered articles about the causes of juvenile delinquency. What applies in other communities, and in other aspects of juvenile delinquency, must apply with much the same force in this Dominion as elsewhere, and to the sexual deviant as to all other juvenile delinquents. In searching for the real or substantive cause it must be borne in mind that juvenile delinquency, of the type now being considered, is a new feature of modern life and a facet of juvenile delinquency which does not appear to have engaged the attention of research workers.

The state of affairs which has come about was uncertain in origin, insidious in growth, and has developed over a wide field. In searching for the cause, and in suggesting the remedies which may be applied, the Committee must not be thought to be laying the blame on any one section of the community more than another.

VII. Some Visual and Auditory Influences

(1) Objectionable Publications

There has been a great wave of public indignation against some paper-backed or "pulp" printed matter. Crime stories, tales of "intimate exciting romance", and so-called "comics" have all been blamed for exciting erotic feelings in children. The suggestiveness in the cover pictures of glamour girls dressed in a thin veiling often attracts more attention than the pages inside.

Immorality would probably not result from the distribution of these publications, unless there were in the child, awaiting expression, an unhealthy degree of sexual emotionalism. Some of these publications are, possibly, more harmful to girls than to boys in that girls more readily identify themselves with the chief characters. One striking piece of information which was conveyed to the Committee was that the girls under detention in a certain institution (the greater number of them had had a good deal of sexual experience) decided that various publications were more harmful than films because the images conveyed by the printed matter were personal to them and more lasting.

The Committee has been deluged with periodicals, paper-backed books, and "comics" considered by their respective senders to be so harmful to children and adolescents that their sale should not be permitted. But, while all the publications sent are objectionable in varying degrees, they cannot be rejected under the law as it at present stands because that law relates only to things which are indecent or obscene.

An Inter-departmental Committee set up in 1952 to report on worthless and indecent literature similarly found that, while publications intended for adults are controlled by the Indecent Publications Act (which in the opinion of that Committee, was adequate providing the public initiated action under it), comics and other publications outside the scope of that Act might be objectionable for children.

When considering comics it is essential to appreciate the difference between the traditional comic, intended exclusively for children, and the more modern style which is basically designed for low-mentality adults. Both styles and variations of them circulate widely in New Zealand among children and adolescents. In general, however, younger children buy, and even prefer, the genuine comic which is not harmful and may even be helpful. Adolescents, and adults also, are attracted by comic books that have been denounced by various authorities as anti-educational, and even pernicious, in moral outlook.

The Inter-departmental Committee recommended that all comics be registered and that it be made an offence to deal in unregistered comics. There are strong doubts whether the adoption of those proposals would provide a satisfactory solution. Once registration were obtained (which would be almost automatic on application) much damage might be done by the distribution of a particular issue before registration could be cancelled.

Surely a simpler, faster, and safer procedure would be to make initial registration more difficult and subsequent deregistration more speedy.

Amendments recently made to the laws of various Australian States should result in a general improvement in the standard of publications distributed in Australia, and consequently in New Zealand. On the other hand, this tightening of the law may induce distributors to dump in New Zealand publications for which they have no longer a market in Australia.

A banning, rather than a censorship, of printed matter injurious to children should be the subject of immediate legislation for three reasons:

- (a) To prevent the Dominion being used as a market to offset any trade lost in some Australian States;
- (b) To encourage the efforts of those people who seek to lead children through good reading to better things; and
- (c) To let publishers know that the time has passed when publications likely to be injurious to the minds of children and adolescents may be distributed by them with impunity.

In order to meet the situation, it would be desirable for the Government to promote special legislation along the lines of the Victorian Police Offences (Obscene Publications) Act 1954.

The Victorian legislation is particularly effective since not only does it widen the definition of "indecent" and "obscene", and enables the police themselves to institute proceedings for breaches of the Act, but it also compels all distributors to be registered. Then, should a distributor be convicted of an offence, he may be deregistered, and in that case would be unable to distribute any other publication whatever.

Despite frequent reference to distributors dumping objectionable publications on a newsagent or bookseller, who has to accept the bad before he can get the good, the Committee has not received any definite evidence of this practice occurring in New Zealand.

(2) Films

The cinema is the only field of entertainment in New Zealand where official supervision in the interest of juveniles is exercised by a public servant with statutory powers. The Government Film Censor interprets his role chiefly as one of guiding parents. On occasions he bans a film; more often he makes cuts in films; most often he recommends a restriction of attendance to certain age groups. The onus is then on parents to follow the censor's advice, on theatre managers to adhere to his rulings, and on the Government to see that the law is enforced.

It is not part of the censor's duty to see that his rulings are observed. A survey taken in 1952 revealed that about one-quarter of all films advertised in the press were advertised with wrong certificates. Reliance upon such incorrect advertisements therefore deprived parents of the protection which the legislature intended for them.

Few prosecutions have ever been taken for such offences, and it is even doubtful whether, if they were taken, convictions would be recorded. Some regulations (essential for this purpose) under the 1934 Amendment Act have never been gazetted; nor have any under the 1953 amendment.

Although the censor receives few specific complaints, and although film distributing and exhibiting interests state that they are complying with the

spirit of the unwritten law, the following undesirable practices irritate a large section of the thinking public:

(a) *Publication of Grossly Extravagant Posters and Newspaper Advertisements* in which sex and sadism are often featured. The theatre managers concerned state most definitely that nothing more than genuine showmanship is behind this.

(b) *Screening of Inappropriate Trailers on Unsuitable Occasions*: By their very nature, trailers are difficult to censor adequately and, because of their origin and intent, are designed to have an exaggerated impact upon audiences. Trailers of the worst type, however, are sometimes shown at special children's sessions.

(c) *Mixing "A" and "U" Certificate Films*: In the words of the exhibitors, this is done "to obtain balanced programmes".

(d) *Admitting Children and Adolescents to Films With Restricted Certificates*: It is difficult for theatre managers to determine the age of their patrons, and the warning notice of restricted attendance exhibited at the theatre may have little effect. Should the age be queried when entry is sought, an incorrect answer will probably be given. Worst of all, perhaps, should the presence of an accompanying adolescent or adult be required, there is always the danger of undesirable strangers taking the place of a *bona fide* parent or friend.

(e) *Misbehaviour in Theatres*: Once inside a darkened theatre, children, adolescents, and undesirable persons may behave improperly and the manager may have difficulty in exercising control.

Appropriate steps recommended are:

(i) The gazetting of the outstanding regulations empowered by the 1934 and 1953 Amendment Acts.

(ii) The provision to the maximum extent possible of non-restricted or "U" programmes for children's sessions.

(iii) The drawing of the attention of parents, repeatedly, to the fact that through the censor's certificates they, the parents, have a reliable guide provided exclusively for their benefit and intended for their use.

(3) Broadcasting

Disapproval has been expressed of many of the broadcast serials and suggestive love songs. If considered dispassionately by adults, most of these are merely trashy, but quite possibly, and particularly in times like the present, the words of a song, or the incidents of a serial, may more readily give offence. Obviously, the New Zealand Broadcasting Service can never please each individual listener, but, equally obviously, it should seek to avoid giving any public offence. The Service seems conscious of its responsibilities and tries to make its programmes generally suitable for family audiences; but it also aims to reflect the standards of its listeners, and some may feel that it should try to raise those standards.

Although the Service considers that it should never give the appearance of dictating what listeners should, or should not, hear, it has its own auditioning standards that should satisfy the morals of the most particular. Records must first conform with the very strict code of the Broadcasting Service, after which they are classified as suitable for children's sessions, for general sessions, or only for times when children are assumed not to be listening. The Service can, and does, reject episodes from overseas features, and in doing so experiences no difficulty with either overseas suppliers or local advertising sponsors. Restrictions on dollar purchases and the nonavailability of "sponsorable" programmes from the United Kingdom curtail the availability of commercial features, and generally restrict them to those produced in Australia.

On the other hand, the Service points out that listeners have a wide choice of broadcast programmes, advertised well in advance, and it assumes that listeners will be selective in tuning in their sets, and restrictive in not allowing their children to listen after 7 p.m. when programmes specially suited for them cease. This assumption, however, is not well founded. Once switched on, the radio frequently stays on, and children are then allowed to continue listening far too long. Consequently, they not only lose part of

their essential sleep, and sometimes even the mental state conducive to sleep, but they hear radio programmes not intended for them.

Just when, how long, and how often, children, adolescents, and even parents listen to the radio is something that has never been accurately determined in New Zealand. It is well known that young children listen after 7 p.m. and that adolescents listen until a very late hour, particularly on holidays, and for this last-named fact no allowance is made when the programmes are being arranged. Adolescents listening to the latest songs stimulate the demand for popular sheet music. It is the words of those "hits" that form the chief target for criticism expressed to this Committee. Popular songs are transitory in nature, and it is the tune, rather than the words, that makes an impression.

Crime serials for the young, and the not so young, are another target for criticism, but provided that the Service is adamant in its rule that "crime must never pay" loss of sleep is, possibly, the most serious consequence of over-indulgence by child listeners.

Some people claim that they can detect a definite pattern of suggestive songs and unsuitable thrillers in the programmes. In times like the present the Service should critically re-examine its programmes in order to remove any wrongful impression that might be created, either by a too frequent repetition of items where sex and crime are prominent, or by the possibility of a meaning being taken out of them which was not intended.

The Broadcasting Service should similarly review its ideas about children's listening hours and rearrange its classified times accordingly.

When crime serials are broadcast it should be made obvious that crime does not pay.

A married woman might well be included on the auditioning panel.

Even if the Service does all these things, the major responsibility will still rest upon the parents, who should select their children's programmes and see that their listening hours are reasonably restricted.

(4) Press Advertising

An examination of advertisements in New Zealand newspapers during recent years clearly shows how far the bounds of propriety have been extended. What was a generation ago considered improper is now generally accepted as a subject for display. Advertisements, more and more based on sex attraction, horror, and crime, occupy a large and increasing proportion of all advertising. Because this trend is obviously objectionable to a section of the community, such advertising must partially fail in its object of attracting. In addition, this advertising may be harmful to those juveniles and adolescents with whom this Committee is primarily concerned. Advertisers should, in their own interests, raise their standards—perhaps by establishing a voluntary Advisory Council similar to that in the United Kingdom.

(5) Television

Although television is not yet available in New Zealand, its introduction is inevitable. Overseas reports of its effects on children, adolescents, and even adults indicate that plans to minimize any harmful effects in New Zealand should be made without delay.

The arrival of another visual and auditory influence will add weight to the suggestion made to the Committee that liaison should be established between all the various censoring authorities.

Objectionable publications, films, broadcasting, and television have been the subject of expert appraisal in many countries. The Committee has made its recommendations in this section of the report fully aware that many authorities can describe these matters as no more than secondary influences in the causation of juvenile delinquency.

To what degree these things are directly causative no one can say. Their influence is imponderable. But whatever their influence, the Committee is firmly of the opinion that practical measures to control what is offensive to many would be an indication of a renewed concern for the moral welfare of young people. The result would be the replacement of undesirable material with something much better.

VIII. The School

(1) Teacher and the Child

For several reasons, there has been a change in the relationship that used to exist between teacher and child. Earlier the teacher lived in, and was part of, the community and so knew something of local conditions and the tensions of his pupils' lives. This gave him a more intimate knowledge and sympathetic understanding of a child's difficulties.

Today in the cities, and particularly in the quickly growing urban areas, there are different conditions. Schools are new and big, without a tradition of long community service; teachers have difficulty in finding accommodation in the district from which their pupils come; to meet the shortage of permanent staff many partially trained persons have to be used as relieving teachers; even qualified teachers have to move frequently to meet promotion requirements.

As a result the knowledge that once came to a teacher from sharing the same environment as the child has now to be acquired in some other way and, probably, from within the school. This knowledge is of great importance in diagnosing maladjustments that might lead to delinquency.

In primary schools the situation is met by the establishment of a system of visiting teachers who can investigate the circumstances of a problem child. Perhaps of greater importance, the presence of visiting teachers reminds class teachers that children have difficulties out of school. The Committee feels that:

(a) As many of the problems have a medical origin, there should be as much official liaison as possible between the public health nurses and the visiting teachers. This would automatically make the services of a medical officer available.

(b) Particularly in rapidly growing industrial areas, the number of visiting teachers should be increased.

In post-primary schools there is at present no official system of linking the home and school in the investigation of problems. Traditionally the headmaster has done this, but with the increase in the size and complexity of schools he has now too little time for this work.

Post-primary principals, in their evidence, appeared worried by the problems of conduct arising from the inability of pupils to leave school until they have reached fifteen years of age. It has already been shown that the pattern of juvenile delinquency which is the subject of this investigation is found particularly in this age group.

It therefore seems desirable that some help should be given to post-primary schools. The Committee makes no specific recommendation^[2] how this should be done, although it is emphatically of the opinion that there is a need for this help, and that the personality of those doing the work is of more importance than the question as to which organization should control them.

This is only the immediate step. Everything possible should be done to restore the community bond between teacher, parent, and child—by the stabilizing of the teaching service, by the provision of houses for teachers in newly developed areas, and by continuing the effort to increase the number of women in the service.

(2) Co-education

At the hearing of the immorality charges in the Court at Lower Hutt the prosecuting officer attributed the delinquency, in part, to the association of boys and girls in co-educational schools. This directed the attention of the Committee to the effect on morality of the propinquity of the sexes in schools.

There seemed to be no disagreement on the question of educating boys and girls of primary-school age together. The desirability of co-education at the post-primary school level, however, was frequently disputed. Many opinions were heard, for and against.

The Committee was not concerned with the relative values of the different types of school, except in so far as they had an effect on juvenile

delinquency.

Statements were made that co-educational schools did, in fact, increase the chances of immorality, but although the Committee investigated these charges it could not find that acts of immorality among pupils did in fact arise from their association at school.

There was evidence that one girl had incited seven boys to sexual misbehaviour on the way home from a co-educational school. Thorough investigation proved to the Committee that the group came from the same neighbourhood and had become known to one another from their home and street association. Acts of indecency had occurred long before they went to the post-primary school.

Senior pupils of an intermediate school were concerned in depravity, both heterosexual and homosexual. The trouble probably spread through the acquaintanceships made at school, but in all cases the history of the instigators, in intelligence and environment, showed either that they were already concerned in immoral acts outside the school or that they had home circumstances conducive to delinquency.

In many of the cases that were brought to the notice of the Committee the name of the school was associated with the offender, even although the offences did not occur within the school or arise from it. This linking of the school with the offender is unfortunate, as it is unsettling to the other pupils of the school and disturbing to the parents of the district.

(3) School Leaving Age

The school leaving age is now 15, but there are obviously some pupils, in the upper forms of primary schools and the lower in post-primary, who, either through lack of ability or lack of interest, are not only [not]^[3] deriving "appreciable benefit" from their further education, but are indeed unsettling and sometimes dangerous to other children.

The School Age Regulations (1943/202) permit of exemption from attendance at school in cases where the Senior Inspector of Schools in any district certifies that a child of 14 who has completed the work of Form II is

not likely to derive any appreciable benefit from the facilities available at a convenient school or the Correspondence School.

The Committee recommends:

(a) That the Department should consider whether some better method of educating these children can be evolved. It feels that the mere granting of an exemption certificate may transfer the problem from the school, where there is at least formal oversight, to the community, where this is not the case.

(b) Where the underlying reason for exemption is the misconduct of the child, the Senior Inspector should have power to grant the exemption subject to the child being supervised by the Child Welfare Division of the Department.

(4) Relations With the Child Welfare Division

From the evidence received it is clear that principals of schools would welcome a closer liaison, by regulation, with the Child Welfare Division. A high degree of co-operation already exists in some places, but it depends on the personalities of the people concerned and is not general.

With a full realization of the desirability of secrecy in the affairs of a delinquent child, but also with the knowledge that the principal of a school should know as much as possible of his pupils, and in most cases has known them longer, and in conditions of less tension than the Child Welfare Officer, it is suggested that:

(a) Where a child in a school, or transferred to it, has come to the notice of the Child Welfare Division for acts of delinquency, the principal of the new school should be informed.

(b) Where a pupil is to be charged before the Children's Court the principal should be asked to make a recommendation regarding the future of the child either independently of, or jointly with, that of the Child Welfare Officer. At the present time the principal is merely asked to report to the Child Welfare Officer, although, from his longer experience of the child, he may be in a better position than that officer to suggest what should be done.

(5) Sex Instruction in School

The views of the Committee on the whole subject of sex instruction are given elsewhere in the report. Here it is emphasized that, apart from the biological aspect as a part of nature study in the primary schools and general science in the post-primary schools, the school in general is not the place for class instruction in sex matters.

Incidental features of sex hygiene will arise naturally from physical education and can be adequately treated there.

It is felt that the teaching of the fuller aspects of the sex relation between men and women requires an emotional link between the teacher and the taught, and it should not be looked on as a duty of the school to forge this link. But where ignorance persists, through the failure of the natural agencies, the school should try, if a suitable person is available on the staff, or by the employment of a specialist, to remedy the omission.

(6) "New Education"

Several witnesses have claimed that the philosophy underlying the New Zealand education system is a predisposing cause of sexual delinquency, but in the absence of direct evidence, which is obviously difficult to obtain, such claims can only be an expression of personal opinion. Similarly, the terms "play way" and "free expression" have been quoted to show that traditional external disciplines have given way to a concentration on the development of the personality of the child—a development which could lead to licence. But as there are not sufficient comparative figures available for New Zealand, and as reports from overseas suggest that the pattern of immorality is a world-wide one, the Committee is unable to reach a conclusion on this matter.

It does, however, feel justified in suggesting that nothing but benefit could come from representatives of the Department of Education attending meetings of Parent-Teacher and Home-and-School Associations to enable responsible and interested parents to obtain a clearer understanding of modern educational aims before expressing their views.

IX. Community Influences

In an examination of the factors which promote juvenile delinquency special attention must be given to the type of community in which children grow up. The more normal and well balanced a community is, the greater are the child's chances of developing a well-balanced personality. The teaching at school may be good, the home training satisfactory, but these good influences may be upset by defects in the neighbourhood. When the atmosphere of home or school is unsatisfactory, the chances of normal healthy development are made progressively worse for any child whose community environment is also poor.

(1) Housing Development

In New Zealand there are a number of communities which have grown quickly and have become unbalanced. No one doubts the urgent need that there has been for houses to accommodate a rapidly expanding population. On the other hand, in the light of experience, it is considered that wise planning in the future could avoid some of the disadvantages which have become evident in these areas. These disadvantages are:

(a) Fewer Adults

Large-scale housing is primarily for married people with growing families. Eventually the number of young people is much greater than the number of adults. There is a pronounced difference between a settlement of mushroom growth and one that has developed gradually with large family homes and smaller homes, grandparents, parents, uncles, aunts, and children.

In order to illustrate the disparity between the adult and juvenile population in all such areas the Committee obtained from the Education Department a statement of the primary and secondary school children in Wellington and the Hutt Valley as at 30 August 1954:

	<i>Wellington</i>	<i>Hutt</i>
Pupils at primary public and private schools	15,300	12,250

Pupils at secondary public and private schools	5,750	3,000
	21,050	15,250

It must not be overlooked that the homes of many children who attend schools in Wellington are situated outside the ordinary confines of the city; many of the children are resident in the Hutt Valley. For instance, 250-300 of the girls at Wellington College come to that college from the Hutt, and many more children from outside the city attend other city schools. The exact total is not readily assessable, but it is known to be considerable. On the other hand, it is not thought that the rolls of Hutt schools are increased by the attendance of pupils from outside that district.

Another statement shows that in Wellington city 70.4 per cent of the total population are adults, whereas in the Hutt only 60.1 per cent are adults.

If that abnormal distribution of population is a causative factor in juvenile delinquency, the situation will have to be carefully watched because:

(i) A graph compiled for the Committee shows that the biggest number of children is in the two-to-four-year-old group. When one considers that the delinquency now being considered is in the 13-to-17-year-old group, the period of greatest danger will not be reached until about another nine years have elapsed. This is a disturbing prospect and demands serious consideration.

(ii) There are many similar housing settlements in New Zealand. The absence of public disclosures of delinquency in any of those places must not be taken to mean that they are free from it.

(iii) In areas settled largely by people with growing families the rate of increase is striking. In planning one post-primary school the rate of 0.7 children to a family was adopted. Three years later the rate was found to be 1.5 per family.

(b) Absence of a Community Spirit

In the normal development of towns and suburbs a community spirit comes from an ability to make one's own choice of dwelling. A newly-married

couple prefers one district or one suburb to another, either because their relatives or friends are there, because it is handy to the husband's work, because of "the view", or for similar reasons. The house they build or buy or rent was the house of their choice. In that way they develop pride of ownership or of possession. They join such of the local churches, societies, and clubs as already exist, and themselves organize and support other agencies of community value.

In quickly settled housing areas this community spirit has not yet had time to develop. The people have not chosen to live there: a house has been "allotted" to them. With a feeling of relief that their immediate problem is solved, they move in; but they soon find themselves in an area without any established traditions or the buildings associated with those traditions. Churches, schools, halls, and monuments are entirely non-existent or very new. The areas left for sports grounds, parks, and reserves are still largely undeveloped. The occupants of the new houses have not the financial capacity to provide these things, and there are seldom any private benefactors, because there is not a stratum of wealthy people in or near these settlements who might be benevolently inclined to help the district where they reside. The help which the new residents can give, or obtain from the State, churches, or other organizations to provide a community fellowship, must fall far short of what is usually obtainable in areas which grow up normally and naturally.

(c) Overcrowding of Houses

Houses in the new areas are often found too small as the boys and girls grow up. The result is streets of overcrowded homes unsuitable for family life. The tendency for the young people to seek their pleasures away from their home and district is therefore greater than it is in mature communities.

(d) Tendency to Form Groups or Gangs

Where a large number of children live near one another, and many of them are left by their parents to their own devices, the formation of groups or gangs is inevitable. Some of these children are not moulded into the activities of churches or other helpful organizations. They simply coalesce by the accident of their circumstances, and make their own fun, in which,

unfortunately, the influence for good of the better among them is often outweighed by the misbehaviour and dangerous propensities of others.

(e) Emotional and Mental Factors

New housing areas tend to be populated by a large proportion of those people whose outlook on life has been affected by disturbances in their early married years. Marrying during, or soon after, the Second World War, they were obliged to live in small apartments or transit camps and were thereby unable to live the normal life of a married couple. Either because of this, or because of conditions existing in the housing areas, there does not seem to be the same group willingness to improve their conditions as is seen in older communities. Indeed, individual cases show a virtual lack of self-reliance.

There is the further factor that when the breadwinner has to travel a long distance to work he is not able to spend as much time with his family as is desirable, or to share in the work of the community.

(f) Little Variety in Amenities

Young communities cannot immediately provide, from their own resources and enthusiasm, all the amenities normal in an established settlement. Necessarily, these must be added one by one, and in the meantime the residents have to participate in a restricted range of activities.

All the above matters show how difficult it is to expect a community spirit in any area which is just an aggregation of houses. Many years must pass before there can be anything like a desirable balance of community interests in such an area. Juvenile delinquency in new housing settlements might conceivably be reduced, if, in future, State houses were not erected in extensive blocks, but were built in such smaller numbers as could be more easily integrated into existing communities of people.

(2) Recreation and Entertainment

As in other forms of delinquency, the recent outbreak of immorality or, more correctly, the revealed evidence of it has directed the minds of many to an assumed dearth of organized recreation and entertainment. Such a thought more easily rises to the mind when it is known that many cases have occurred in new settlements where the building of State houses has gone far ahead of the ability of the community to arrange for the provision of playing fields, halls, and clubs.

Further, those who have special ideas of the importance of hobbies, pet animals, square dancing, and things of that sort have been active in urging upon the Committee that greater attention should be given to such matters as possible ways of alleviating the trouble.

It is true that a child who joins sporting and other clubs, or has its mind directed towards hobbies or other interests, is less likely to become a delinquent than one whose thoughts are not similarly occupied. But it is wrong to assume that the present trouble can be cured by the extension or encouragement of such activities. The reason is that the pre-delinquent is not attracted by such forms of recreation or healthy pleasure. If he is persuaded to join a club or society, he may soon make such a nuisance of himself that the leader will be obliged, for the good of the club, to rebuke him or warn him that he will not be allowed to attend in future unless he behaves. The pre-delinquent, therefore, either does not join, or else soon leaves, a club where he cannot feel happy. He is inclined toward a friendship with somebody else whose nature is compatible with his own. From this companionship a group of wayward children may be formed. They incite one another; they conspire together; they attract the attention of others; the group may become a gang. From the pairs, the group, or the gang, mischief or immorality soon begins, while all around there are many clubs and societies suitable and available for them.

Furthermore, single-sex clubs will not provide the answer for those who desire the companionship of the other sex. In our society, boys and girls must meet socially. It is part of the growing-up process and, if supervised carefully and unobtrusively^[4], the mixing of boys and girls can be very advantageous.

From the evidence given by witnesses, the following four points emerge:

(a) The school today provides so many interests and activities that the time of the pupil is fully occupied. Since it is essential to retain the family group as much as possible, in general, children should not be encouraged to go out excessively on week nights. The competition of organizations for good school children as leaders can become unsettling to the young.

(b) Adolescents who have left school provide a field in which club organizations are able to provide interests and activities for those who have left the directed conditions of school life and are entering on the freedom of adulthood. Many of these activities will be for both sexes and their success depends upon trained leadership.

(c) There is much advantage in having the clubs and organizations within a community locally co-ordinated. Over lapping can be avoided, facilities are more easily provided, and the opportunity is given to youth to share in the interests and efforts of the adult community.

(d) The Committee warmly commends the work of all those societies and clubs which have been active in promoting the well-being of young people. Chief among the difficulties faced by these character-building organizations which have made representations to the Committee is the lack of trained leadership. Their appeal is for more leaders and for some means by which these leaders may be trained.

But however desirable and commendable all these services to youth are, and even allowing for the fact that without them some children might slip into bad ways, their further development will not provide the cure. Indeed, much of the immorality which has occurred has been among children who have had the fullest opportunity for healthy sport and recreation.

(3) Liquor and Gambling

It was strongly urged by religious and benevolent organizations, and also by many private people, that juvenile delinquency could be attributed in part to the effects of drinking and betting.

The Committee realizes that drinking and gambling to excess may well be symptomatic^[5] of the type of home where there is child neglect. There is no need to stress the obvious. But the matter does not rest there. Much danger

is inherent in the view that no social occasion is complete without liquor. It has come to the notice of the Committee that many parents are conniving at the practice of having liquor at adolescent parties. Such parents are being unfair to young people, and the Committee considers that if right-thinking parents took a firm stand in this matter a sound lead would be given to the community as a whole.

X. The Home Environment

(1) Feelings of Insecurity: The Unloved Child

A harmonious emotional development during childhood is one of the most important factors influencing human behaviour. Any child who feels unloved, unwanted, or jealous of the care and attention given to other members of the household suffers from a feeling of insecurity. This feeling of insecurity renders the child more susceptible to influences leading to delinquency.

The mother's attitude to the child is of prime importance. There is a psychological link between mother and child from the very moment of birth—a link that can be substantially strengthened by breast feeding as far as it is practicable. The attitude of the mother to the child, even before birth, may well have a marked effect upon the child's sense of security. If pregnancy was not welcomed by the mother, her child may come into the world under a distinct handicap, that of being an unwanted child. Subsequent adjustment may not be as satisfactory as she imagines it to be.

There is often, however, a vast difference between the parents' love of a child and the child's subsequent idea of being loved. The love that every child needs is affection combined with wisdom—a wisdom that will show itself in a watchful concern for the child's well-being throughout childhood to late adolescence. It can be summed up as the kind of love found in a warm family life where all the members—father, mother, and children—are in a proper relationship the one to the other. This relationship is mere difficult to obtain where the child was unwanted or where one parent becomes unwilling to share with the child the love which he or she formerly alone received from the other parent.

A child living in an abnormal family environment, whether that abnormality arises from the birth of the child or the maladjusted personality of a parent, is the type of child which may later seek compensation in irregular sexual behaviour. But the child who, during its early years, lives in an environment where it feels secure, loved, and accepted is not likely to become a deviant.

Evidence has been presented to the Committee of many cases of delinquency which may fairly be traced to one of the following causes:

(a) *Emotional Disturbances* that have arisen out of a divorce, separation, or remarriage. An emotional upset may arise from a home that is broken by a divorce or separation or, equally important, from a home in which tension follows discord between the parents.

(b) *Poor Discipline* arising out of a parental notion that love for the child can be shown by gifts in money or kind, or by allowing the child to do what it wants to do. Many of the parents of delinquent children are in that category of people who have been far too indulgent with their children and have been unable to say 'No'. It is a big mistake to suppose that the respect and love of a child will be lost by firm, kindly guidance. The Committee has evidence that a large group of delinquents detained in an institution attributed their situation to the failure of their parents to be firm with them in early life.

(c) *Lack of Training for Parenthood*: It was somewhat alarming to find that many parents have found the responsibilities of home life too much for them. They had entered into matrimony without having had their attention drawn to the ways in which a home can, and should, be managed.

The duties which one spouse legally owes to the other are fairly well known. Thanks particularly to the efforts of the Plunket Society, great help is available in the rearing and management of babies. But there is a big gap in the knowledge of the art of home-making possessed by many parents. Much of that gap has been filled in by the school, the church, and various youth organizations, but the more these outside agencies do the less inclined are some parents to shoulder their own personal responsibilities. The home should be the place in which all these activities are co-ordinated: they should supplement home training and not subtract from it.

(d) *Lack of Responsibility*: There was no need for anybody to stress this factor before the Committee—it stood out as a matter of grave concern. Many of the parents of children affected by recent happenings throughout the Dominion showed a deplorable lack of concern for their responsibilities not only to their own children, but to the associates of their children. It is one thing to trust a youth; it is quite another thing for parents to go away for

a day of golf or to spend their week-ends away from home leaving the boy to his own devices. It is one thing for Mrs A to give her daughter permission to stay the week-end with Mrs B's daughter, and for Mrs B, to give permission for her daughter to stay the same week-end with Mrs A's daughter. It is quite another thing when neither Mrs A nor Mrs B shows that interest in their daughter which would prevent their being shocked on finding from the police weeks later that the week-end was spent with other adolescents in the house of Mr and Mrs X, while those parents in turn had trusted their son. A simple inquiry by the parents of A, B, or X during or after the week-end could not be resented, and, indeed, children would respect their parents more if such an inquiry were made.

Of lesser import, but still indicative of a lack of awareness of responsibility, is the attitude of parents who give money to their children to go to the pictures in order to get them out of the way without even bothering to look at the programme to see if it is a suitable one for children.

Admittedly, parenthood, if it is not to end in disaster or the fear of disaster, is a great responsibility. It involves a continual struggle against harmful influences from outside. It demands also parental interest in the activities of the children and sometimes a measure of self-denial for the children's sake. Wisdom and experience combine in suggesting to all parents that they should guide their children, and not be governed by them.

Those who read this report might usefully ponder the question whether the ever-increasing way in which responsibilities in character building are being assumed by schools, libraries, clubs, and many other organizations has not made parents less heedful of their own personal responsibilities for the training of their children.

While the Committee realizes that the care shown by some parents for their children has proved to be inadequate, there are many parents who are examples of what parents ought to be. Above all, the Committee wishes to stress that parents should not suffer from feelings of inadequacy owing to a spate of modern knowledge often expressed in semi-technical terms. Parents should enjoy their children, and this enjoyment will lead to increasing co-operation within the family.

(2) Absent Mothers and Fathers

Many persons have expressed the opinion that sexual immorality among young people arises, in part, from the fact that mothers are frequently absent from their homes at times when their children need their care and guidance.

Mothers who leave children to their own devices are in three categories:

(a) Nearly one-third of the delinquent children whose cases were considered by the Committee belonged to homes where the mother worked for wages. Another survey showed that, in a closely populated area, 25 per cent of the mothers of pupils of a post-primary school went out to work. Some mothers may need to work; but many of them work in order to provide a higher standard of living than can be enjoyed on the wages earned by their husbands, or because they prefer the company at an office, shop, or factory to the routine of domestic duties.

(b) The second category comprises those wives and mothers who extend their social, and even their public, activities beyond the hour at which they should be home to welcome their children on return from school. Happy and desirable is the home where the children burst in expectantly or full of news concerning something that interests them!

(c) The third category of absentee mothers consists of those who give their children money to go to the pictures, while they themselves go to golf, or to a football match, or pay a visit to friends.

When dealing with this kind of thoughtlessness it should be pointed out that fathers are not free from blame. As breadwinners they have necessarily to be away from home throughout the day, but they have opportunities in the evenings and at week-ends to identify themselves with their children's interests and activities.

A satisfactory home life can be attained only by the co-operation of both parents in the upbringing of their children.

(3) High Wages

In striking contrast to the contention that the cost of living is so high that mothers are obliged to work is the complaint that many young people have

too much money. This applies both to school children and to boys and girls who have commenced working.

It cannot be denied that many children have too much spending money, and that others show too great a desire to have it.

It is also a well-known fact that many children are not content to do normal tasks at home when they are able to obtain good pocket money by doing odd jobs for others.

The starting wage for adolescents is often somewhat high, and thrift is not practised by them. A few years hence, these adolescents may be in the ranks of those who complain of their inability to obtain homes. This has prompted people to urge that a compulsory savings scheme should be instituted to guard young people from the evils of misspent leisure and to develop in them that sense of reliability which is so often lacking.

There is certainly something wrong when mothers work to increase the income of the household while youths, who may be paid nearly as much as parents with family responsibilities, spend their earnings on expensive luxuries.

If juvenile delinquents were admitted to probation instead of being admonished or placed under supervision, it might be practicable for the Courts, in suitable cases to make it a condition of probation that the offender paid a portion of his earnings into a compulsory savings scheme. Even if such a procedure could be devised it would apply only to those who have become delinquents when the major consideration should be given to the problem of the pre-delinquents. This is a matter to be considered further in Section XVI of this report.

XI. Information on Sex Matters

For many years the expression "sex instruction" has been used and understood by most people. The Committee makes clear its appreciation of the fact that the term is inadequate as not indicating that the sexual relations of man and woman should be a harmonious blend of the physical and the spiritual. Many parents of children will agree that they themselves obtained only a knowledge of the mechanical aspects of sex from school companions. Even this information was often gleaned from undesirable conversations. Such parents wish that their children should receive this knowledge in a totally different fashion.

The terms "sex instruction" and "sex knowledge" are employed here for other terms are not yet in common usage.

In some of the cases investigated by the police the children concerned appear to have been very ignorant of the rudimentary facts of the subject. In other cases they showed knowledge far in advance of what would be expected. This advanced knowledge was, however, only in respect of isolated portions of the subject.

The striking contrast between ignorant and precocious children confirms the view that a statement is required as to when the information should be given, who should give it, and what should be its source.

(1) When Should This Information be Given?

The best time to give any information is when a child asks a question. The simple answer giving no more than is necessary is the desirable one. The question "Mummy, where do babies come from"? should not involve a dissertation on sex. If this method of approach is clearly understood, the parent need never be worried about the time to impart information.

(2) Who Should Give This Information?

As children show varying degrees of curiosity concerning the subject at varying ages, the initial information should not be given as part of school

instruction, but should come from a parent or parent-substitute.

Since parents are obviously those best suited for imparting this knowledge, why do they so frequently fail to carry out this duty—a failure that is not restricted to any intellectual or economic group?

First, there is a sense of guilt in parents concerning sexual relations, born out of their own unfortunate initiation into a knowledge of a subject discussion of which was generally frowned upon in their young days.

Secondly, there is a real difficulty. As the sex organs are also the channels for the elimination of waste, exaggerated modesty often hinders discussion.

Thirdly, there is often a genuine ignorance on the part of parents concerning what to say in answer to the natural questions of a child and what terms to use in reply—terms that will be neither embarrassing to the parent nor unintelligible to the child.

Fourthly, many parents are not convinced of the necessity for any special action by them. They feel that, as the child grows, it will assimilate this knowledge, but they do not give consideration to the source from which the knowledge may be obtained, or the manner in which it will be imparted.

(3)The Source of Information

There is a need for reliable sources of knowledge for the parents. Suitable literature with a matter-of-fact approach that may yet include the spiritual factor will remove self consciousness. An indirect approach is not helpful. Specimen conversations between parent and child can be readily adapted for any family.

Not all available literature on this subject is of equal quality. Several religious organizations already have publications suitable for the members of their respective denominations. The Committee is also informed that the Federation of Parent-Teacher and Home and School Associations, in conjunction with several experts, is now in the course of publishing pamphlets suited to different age groups.

The barrier between parent and child can be lifted by meetings where talks are given and films shown. Heads of schools, in conjunction with Parent-

Teachers' Associations could invite, on separate occasions, mothers with their daughters, fathers with their sons, or both parents together. The special value of such gatherings would be to enable those with adolescent children to do what they regret having avoided doing in earlier years.

It will be argued that, whatever is done to help parents, there will still be a proportion likely to baulk at giving the information. Some may even remain indifferent. There could be no objection to some unaccompanied girls or boys attending the meetings for parents and children. The Committee states its views on sex instruction in schools elsewhere in the report. It is stressed here that sex instruction given in the absence of the parents may well increase the number of parents who neglect what should be a jealously guarded privilege.

In conclusion, parents should remember that, even though adolescents may appear to possess a great deal of knowledge, it may be factually inaccurate and, above all, may require putting into correct perspective. This applies particularly to the older adolescents who have been involved in criminal charges. That group may have practical experience of the mechanics of sex; what they require is a more wholesome outlook on the intimate relations of man and woman.

XII. The Influence of Religion on Morality

A common element in many of the statements made to the Committee is a desire for a better spiritual basis in our society on which a sound code of morals may be built.

(1) The Need for a Religious Faith

The consensus of opinion before the Committee is that there is a lack of spiritual values in the community. This is not merely because the majority of people do not go to church, but because of the general temper of society and standards of morality. Most people would affirm some sort of belief in God, but are unable to relate it to their daily lives.

It may be a matter of argument that morality is dependent on religion, but the structure of western society and our codes of behaviour have, in fact, been based upon the Christian faith. If this faith is not generally accepted, the standard of conduct associated with it must deteriorate.

Signs are not lacking that people are turning away from a purely materialistic conception of life, and seeking a more spiritual basis for conduct.

The recent disclosures in the Hutt Valley indicate a largely nominal church affiliation in most of the cases under review. Although it was stated that thirty-six per cent of the offenders attended church or Sunday School regularly, and that sixty-four per cent had never attended or had ceased to attend, closer examination of the individual cases would be required before any deduction could be drawn from the figures given to the Committee. It is, however, safe to assume that there was little religious teaching; and it is unfortunately true that there was a failure to observe moral standards. The acceptance of the Christian position cannot fail to promote good conduct in all fields including the relationship between the sexes.

(2) The Need for Religious Instruction

The Committee considers that the Nelson system of religious teaching in schools should be encouraged and developed. In so far as the basic philosophy of education in New Zealand may not be religious, the Committee notes that a conference between the Department of Education and the New Zealand Council for Christian Education is being arranged.

Church activities among youth affected were criticized on the grounds that they appealed only to the "good boys and girls", or to those who already belong to a church. This situation presents a challenge which needs to be met, and it will demand, in particular, a consideration of how young people are to be encouraged to spend their time on Sundays.

(3) The Need for Family Religion

As family life is vital in this inquiry something must be said about religion in the home. It is clear that, other things being equal, a home with a real religious atmosphere is a good safeguard against immorality, and a sound background for moral teaching, particularly for the development of knowledge about sex.

The practice of family religion is to be strongly endorsed.

XIII. The Family, Religion, and Morality

(1) The Importance of the Family

From all that has been above written it will be seen that there is not any one cause of the sexual delinquency among children which has provoked this inquiry. There are many predisposing and precipitating causes. If there be any common denominator in the majority of cases studied by the Committee it is lack of appreciation by parents of their personal responsibility for the upbringing and behaviour of their children or, if they do appreciate their responsibility, they are unable to guide them correctly and to maintain control of them. This finding is in harmony with the current of public opinion expressed in the statements that "it all comes back to the parents" or "the parents are to blame". That much cannot be gainsaid.

But what is the root cause of this failure or inability on the part of present-day parents? This is an aspect of its assignment to which the Committee has paid great attention.

It should be made quite plain that the Committee does not subscribe to the view that the sexual immorality which has recently been brought to notice is entirely of the pattern which prevailed in former generations. Nor can the Committee be content with platitudinous recommendations as to how this immorality among young persons may be kept in check within the existing processes of the law. It is the view of the Committee that during the past few decades there have been changes in certain aspects of family life throughout the English-speaking world leading to a decline in morality as it has generally been understood. A remedy must be found before this decline leads to the decay of the family itself as the centre and core of our national life and culture.

(2) The Place of the Family in the Legal System

The emphasis which the Committee places upon this section of its report calls for a statement of the place of the family in English law.

The family (meaning thereby the father, mother, and children) from time immemorial has had a definite and recognized status in our national life—a place which it has not always occupied or enjoyed in other cultures and other systems of law. There is in our culture an air of sanctity about the home where parents and children dwell. The rights of a parent against any intrusion into his family affairs have been expressed in such statements as "A man's house is his castle".

Our law of domestic relations centres upon the home. When the Legislature or the law-courts have interfered in the conduct of a home it has only been because one member of the family has failed to discharge the duties which an individual is required to perform towards other members of the family or towards society. Speaking generally, the rights and duties of individual members of the family have been preserved and enforced in our statute law. Illustrations are to be found in the Infants Act, the Destitute Persons Act, the Child Welfare Act, the Family Protection Act, and the Joint Family Homes Act.

The policy of English law is, and always has been, to keep the family together and to uphold the rights of parents. Those rights have correlative duties attaching to them. It is the failure of some parents to perform those duties which has now become a matter of grave concern.

The irony of the situation is that this slipping of parental responsibility has occurred contemporaneously with the granting of financial and other help to parents. Family allowances and State homes should be concomitants of an increased sense of responsibility. Despite all that the State has done, and is doing, for families, the moral standards of the community have somehow been undermined. Is this because of a general lowering of the moral standards of adults? Is the attitude of children towards sexual matters a direct reflection of the thoughts and conduct of their elders? To borrow the words of a Jewish proverb "the apple never falls far from the tree". It has been firmly urged upon the Committee that there has been a "breakdown of the moral order and moral standards". That may be putting the matter too strongly, but there can be no denying the fact that the sanctions of morality today are not as strong as they were, say, forty or fifty years ago.

(3) The Sanctions of Religion and Morality in Family Life

Up till early in this century the chief sanctions operating in society were those dictated either by religion or by wisdom and past experience, i.e., religious sanctions and moral sanctions. The standard of religious morality is that which is prescribed in the Bible, interpreted perhaps in different ways by different denominations at different times. The standard of conventional morality is that which has been handed down from generation to generation. There have at times been differences between the religious standard and the conventional standard. For instance, the Church has always reprobated adultery, but even as late as the nineteenth century society accepted, without very much concern, the conduct of a man who had both a legal wife and a mistress. Despite those occasional differences between the religious standard and the conventional standard, our system of morals has been based on the standards of Christianity.

(4) The Moral Drift

During last century it was strongly urged by some scientists that a religion based on faith was untenable. Man, it was contended, should accept only what could be proved by reasoning from observed facts. Once again there emerged, particularly in scientific and literary circles, the belief that there could be a code of morals entirely devoid of religious content.

This intellectual standpoint helped to undermine the authority of the churches. The views of the scientists were not the cause of, but undoubtedly did accelerate, the drift from organized religion.

There is evidence of the effects of beliefs developed during the present century in another field of learning, that of psychology. On the one hand, it is held that there was in former days suppression of the natural development of human personality and, on the other, that a great deal of misery has been caused by feelings of guilt. Ill health, even mental illness, has been attributed to these two factors.

Between the two world wars much of the material of the new psychologists began to drift into circulation in so-called popular editions. Doubtless much of the writing was from reputable sources, but the new views, good in origin, began to suffer as had religious faith in the past from poor exponents.

A desire for scientific accuracy is understandable, a wish to understand the working of the human mind wholly commendable, but many people whose loose behaviour was instinctive, rather than inspired, now had apologists for their conduct. The moral drift had become moral chaos.

XIV. Changing Times and Concepts

Since the beginning of the twentieth century the undermentioned aspects of a changed social order have become evident. It is not within the province of this Committee to make an appraisal of the tenets implicit in any of them. Ecclesiastics may preach against the sins involved; opposition may arise to the philosophy of education; commercial and professional interests may inveigh against the inroads of the State, but this Committee is concerned only in their effects on the sexual behaviour of young people whose habits and characters are being affected. It is now necessary to examine them.

(1) Contraceptives

Perhaps the first major shock to "respectable" society regarding sex was when it became known, soon after the beginning of the First World War, that the Army authorities were distributing "condoms" to troops about to go on leave. Probably this was the first recognition by the New Zealand Government of contraceptives. This decision by the Army was accepted by society, not without misgivings, on the basis that it was much more important to guard against the spread of venereal disease than to endeavour to enforce continence among the troops. Society was obliged to choose between two evils, and it chose what it regarded as the lesser. Contraceptives thereafter came into common use, are now purchased by a majority of married couples, and by many unmarried persons. Their acceptance by the married has posed some problems which have required the attention of the Courts in England. It was not foreseen, when they came into use, that questions would arise as to the validity of certain marriages where one party used contraceptives to avoid having children.

The Committee has found a strong public demand that contraceptives should not be allowed to get into the hands of children and adolescents. Whatever views may be held concerning the use of contraceptives by older people (married or unmarried) no responsible father or mother would countenance their possession by their young sons and daughters.

The Committee is unanimous that adolescents should not buy or have contraceptives in their possession.

(2) The Broadening of the Divorce Laws

The subject of divorce was very fully discussed in the Houses of Parliament in England, in New Zealand, and elsewhere after the First World War.

If parents are unable to live happy lives together or to become reconciled after differences have arisen, the interests of the children may be improved, or may be worsened, by a legal separation or a divorce. Tension in the home may be just as big a factor in the causation of delinquency as a divorce or separation of the spouses.

Juvenile delinquency in all its forms is frequently associated with homes where the marriage is broken either by a divorce, separation, or discord. It is not so much the separation as the tension which precedes and succeeds it that results in children getting out of control.

The matter is noted here solely because, if parents cannot agree together, they are less likely to discharge their duties to their children. Greater is the responsibility which rests upon them in these unhappy circumstances. If parents are unwilling to shoulder the extra burden caused by the breakdown of their marriage, some action by the State may be required if it seems likely that children may suffer.

(3) Pre-marital Relations

One aspect of the moral drift is the number of people who entertain the nebulous idea that it is somehow not wrong to have pre-marital relations or to live together as man and wife without marriage.

Such a view is opposed to all the ideas of chastity which are inherent in our morality. Apart from that, an irregular sex relationship may be psychologically^[6] disadvantageous.

However much adults may desire a good moral standard to be observed by children and adolescents, they have no right to expect it unless they conform to proper moral standards themselves.

(4) "Self-expression" in Children

Early in this century psychologists said that the repressive influences of early discipline were stultifying to the development of the child. They advocated that the child's personality would mature better if uninhibited. This has been interpreted by many people to mean that you should not use corrective measures in the upbringing of children and that their natural impulses must not be suppressed. Some of these people have even thought it wrong to say "No" to a child.

People brought up in this way have now become parents. It is difficult for them to adopt an attitude to their children which does not go to extremes either way. As a revolt against their own upbringing, they are either too firm in their control or too lax. Children brought up in both of these ways have been featured in the case notes of delinquent children placed before the Committee.

(5) Materialistic Concepts in Society

Education, medical and hospital treatment, industrial insurance, sickness and age benefits, and other things are all provided by the State, when the need arises, without direct charge upon the individual. The virtues of thrift and self-denial have been disappearing. Incentive does not have the place in our economy which it used to have. The tendency has been to turn to the State for the supply of all material needs. By encouraging parents to rely upon the State their sense of responsibility for the upbringing of their children has been diminished. The adolescent of today has been born into a world where things temporal, such as money values and costs, are discussed much more than spiritual things. The weekly "child's allowance" is regarded by some children as their own perquisite from the benevolent Government.

The dangers inherent in this materialistic view is that many young people who could profit from further education do not feel a sufficient inducement to continue study. They leave school too soon, and the broadening influences which could come from further education in the daytime, or the evenings, is lost to them. In the result, these young people, having too much interest in material things, and not enough in the things of the mind and the spirit, become a potential source of trouble in the community.

One suggestion made to the Committee was that saving and thrift should be encouraged, or that this might be enforced through the Children's Court in cases where it is found that offenders have fallen into criminal immorality through having more money than suffices to pay the reasonable necessities of life. While the powers of the Children's Court might be extended or used for this purpose in extreme cases where adolescents are brought before the Court, the best help can come from wise action by parents to prevent their powers of direction and control being undermined through young persons having too much freedom and too many of the material things which are not necessary for their well-being.

XV. The Law and Morality

(1) History of the Law Regarding Morality

At no time in the history of the British Commonwealth have Parliaments or the law-courts endeavoured to impose a system or code of morality on the people. Men are not required by the governing powers to observe the moral law, any more than they are required to attend Divine worship. But Parliament, in the shaping of legislation, and the Judges in the administration of justice, have frequently had regard to that indefinable sense of right and wrong which becomes implanted in the human breast. Furthermore, the law, while not coercing any one into following a particular course of moral conduct, has, nevertheless, always been careful to restrain people from acting in such a way as may cause offence to those who do observe the principles of religion or of morality.

Offences against religion (for example, blasphemy and disturbing public worship), and offences against decency and morality (for example, indecent exposure, indecent publications, and prostitution) are strongly reprehended.

In determining what conduct on the part of an individual should be condemned the law has always endeavoured to maintain a balance between freedom of the individual and the rights of the community not to be harmed by the exercise of that freedom.

The law is not interested in sin, or even immorality, but it is vitally interested in the effects of them. A person may stay away from church, but he must not scoff at the Holy Scriptures. He may bathe in the nude, but not at a public beach or near where persons are passing. A human model may be posed for an artist, but must not be exhibited in a shop window.

One other feature of the law regarding morals is that there are some things which adults are not restrained from doing but which the law will not suffer to be done by minors. Common examples are found in the restraints which are imposed on children smoking, or entering upon premises open for "drinking" or betting.

Similarly, through reason and experience, the law has found it necessary to set some limits on the right of an individual to do what he likes with his own person. The community has an interest in the life of every citizen. More particularly may this be said to be so when the State spends much money on the education and health of the people. Suicide has always been wrongful; attempts at suicide are therefore punishable, partly because the State has an interest in maintaining human life, and partly because suicide is a result of sin and a breach of morality.

(2) Protection of Women and Girls from Defilement

At common law the woman was always regarded as the mistress of her own person. Consent was therefore a defence to a charge of rape. The Legislature subsequently interfered for the good of society and in the interests of morality by legislating against abortion, against soliciting for the purpose of prostitution, against the keeping of brothels, and against procuration for the purpose of carnal knowledge.

The next development of consequence in the law on this matter was in the Criminal Law Amendment Act of 1885 (England). This statute, which was subsequently followed in New Zealand, made it a criminal offence to have carnal knowledge of girls. The penalties were graded according to the ages of the girls involved.

As an indication of the seriousness with which the law, by successive stages, has regarded sexual offences it is convenient here to summarize the penalties set out in sections 212 *et seq.* of the Crimes Act (N.Z.).

Rape	Imprisonment for life.
Attempted rape	Imprisonment for 10 years.
Carnal knowledge of girl under 10	Imprisonment for life.
Carnal knowledge of girl 10 to 11 years	Imprisonment for 10 years.
Attempted carnal knowledge of girl under 12 years	Imprisonment for 7 years.
Carnal knowledge of girl 12 to 16 years	Imprisonment for 5 years.
Indecent assault on female	Imprisonment for 7 years.

The above are the maximum penalties. The modern tendency is to inflict much lesser punishment upon an offender, to grade the punishment having regard to such matters as the damage done, the past history of the offender, and the prospect of reform.

(3) Consent as a Defence

The consent of a girl under 12 years of age cannot be raised as a defence to any defilement charge.

But where the girl is over 12 and under 16 her consent may be raised as a defence if:

- (a) The girl is older than or of the same age as the person charged; or
- (b) It is made to appear to the jury that the accused is under the age of 21 and had reasonable cause to believe that the girl was of or over the age of 16 years.

The law on this point is not uniform throughout the Commonwealth. In Victoria the defence of consent is available only when the girl is older than, or of the same age as, the accused (*vide* Crimes Act 1928, Vict. 3664, sec. 45). The Committee has been officially informed that this law (most rigid when compared with the defence of consent available in this Dominion) has been working well since it was first enacted about fifty years ago.

In England the defence of consent is available to any accused under the age of 23 years, but only on the first occasion on which he is charged with the offence.

In an English case, *R. v. Banks*, (1916) 2 K.B. 621, this defence of consent was raised by a man who said that he had no idea that the girl was under the age of 16 and that he did not think about her age at all, but that she had the appearance of a girl of 16. The Court of Criminal Appeal held that he was properly convicted. On the other hand, the Court of Appeal in New Zealand in *R. v. Perry and Pledger*, (1920) N.Z.L.R. 21 (despite the argument of the Solicitor-General to the contrary), decided that, if in the eyes of the jury the girl might well be taken by an ordinary person to be of the age of 16, that would be evidence (not necessarily proof) of a reasonable cause for the belief that she was of that age. Hence it comes about that under our law it is not necessary for an accused person to go into the witness box or to call any evidence to show that the girl appeared to him to be over the age of consent. The nature of her clothing, red on her lips, the fact that she is said to smoke and drink, and evidence on other similar matters, enable a verdict of acquittal to be given.

(4) Weaknesses in the Law

(a) Operation of the Rule Regarding Age of Consent

The readiness of juries to acquit in cases of carnal knowledge of, or indecent assault upon, girls may be due to several facts, of which the following may be mentioned:

- (i) The failure of the law to make it an offence for a sophisticated girl to entice a male into carnal knowledge of her.
- (ii) The modern practice of not publishing the names of the girls involved.
- (iii) The fact that the defence of consent is available to persons under 21 years of age is a factor making it more difficult to obtain a conviction when the person charged is over 21 years.

(b) Girls Not Liable for Permitting Indecency or Carnal Knowledge

The law has always been chivalrous to females. It is not an offence for them to allow to be done to themselves things which, when they are done, render the other party liable to heavy terms of imprisonment.

There is also a practical reason why the State has not legislated against females on this point, viz., the anticipated difficulty of obtaining convictions if the female, when called as a witness, is able to plead that she should not be required to testify lest by doing so she might incriminate herself. This practical objection, however, would lose all force, both as regards cases where the accused are under 21 years and those in which they are over 21 years, if the proposed offence by females were restricted to girls under 16 and thus triable in the Children's Court, and not by indictment. The judicial process in the Children's Court is, or can be, such a speedy process that the Crown would not be hampered in making its charge against the male in the ordinary Criminal Court by the possibility that the case would fail if the girl pleaded that she should not be required to answer questions.

(c) Girls Not Liable for "Indecent Assault" on Boys

It should also be made an offence punishable in the Children's Court for any girl to indecently assault a male.

Under section 208 of the Crimes Act every person, male or female (including a boy under 14 years of age), may be convicted and sentenced to seven years imprisonment for an indecent assault on a female. Under section 154 a male may be sentenced to ten years imprisonment for an indecent assault on a male (consent is not a defence); but a female cannot be convicted of "indecent assault" on a male if he permitted the act.

This anomaly may have arisen because, in ancient times and, later, when the criminal law was set out in statutory form, it was not considered likely that females would descend to conduct which would entice males into the commission of one of these offences.

Having regard to the evidence before the Committee that many boys have been tempted and encouraged into sexual crime by the indecent conduct of girls themselves, in picture theatres and elsewhere, the time has arrived when boys should be protected by letting the girls know that they too commit an offence when they act towards boys in an indecent manner.

(5) Proposed Reforms

(a) It should be made an offence punishable in the Children's Court for a girl whose age is under 16 years to permit a person to have carnal knowledge of her or to handle her indecently.

(b) It should also be made an offence punishable in the Children's Court for any girl to indecently assault a male.

(c) Consideration should also be given to the desirability of amending sections 208 and 216 of the Crimes Act and section 203 of the Justices of the Peace Act. There are three courses which might be followed:

First, to allow the law to remain as it is.

Secondly, to strike out the proviso which permits this defence of consent to be raised in cases where the accused is under 21 years and older than the girl.

Thirdly, to alter the wording of the provision regarding age of consent from—

"... it is made to appear ... that the accused was under 21 and had reasonable cause to believe that the girl was of or over the age of 16."

to—

"... if the accused (being a person under the age of 21 years) took all reasonable steps to ascertain that the girl was of or over the age of 16 years and did as a result thereof believe that she was of or over the age of 16 years."

Any legislation such as is suggested in this subheading would involve an amendment of the Crimes Act and not merely an amendment of the Child Welfare Act. The Committee therefore suggests to the Government that further information be obtained as to how the law regarding "age of consent" is operating in other jurisdictions and that the information so obtained be submitted to the Law Revision Committee for its consideration.

XVI. Child Welfare in New Zealand

(1) History of Legislation

In order the better to understand the limits and extent of the powers under the Child Welfare Act, and how these powers are capable of improvement and extension, it is desirable to set out briefly the history of the law pertaining to institutions and homes established in New Zealand for children in need of care or correction.

The first provisions were contained in the *Neglected and Criminal Children Act 1867*. This statute provided that boys and girls under fifteen years of age could be committed to industrial schools or reformatories for periods up to seven years. In 1873 the Master of any Industrial School established under the Act became *in loco parentis* to children of parents who, because of their criminal and dissolute habits, were unfit to have the guardianship of their children.

In 1874 a *Naval Training Schools Act* was passed under which boys of 10 to 14 years of age, convicted by magistrates for reasons varying from vagrancy to bad associations, could be detained in naval training schools or on training ships and apprenticed to the sea.

In 1882 the *Industrial Schools Act* was passed making better provision for the control, maintenance, education, and training of children under the apparent age of fifteen years who were found to be destitute, neglected, uncontrollable, living in a detrimental environment, or associating with persons of ill repute, and also for children who had committed offences against the law. Prior to the passing of this Act several homes, orphanages, and schools had been established in various parts of the Colony by religious organizations and benevolent societies. They received financial aid out of a vote for charitable institutions administered by the Colonial Secretary.

The *Private Industrial Schools Act* of 1900 was introduced as a result of public resentment against the treatment of boys in a private school. For the protection of inmates a right of inspection of these private schools was given to Judges, Members of Parliament, and other named persons.

The *Industrial Schools Act* of 1908 was mainly a consolidation of the law up to that time but the age of children subject to the Act was increased to 16 years.

The *Child Welfare Act* of 1925 and the amending Act of 1927 made substantial changes in the attitude of the State towards children who had erred. They gave legislative expression to a new world-wide desire for a more scientific approach to the social problem of dealing with children who had manifested anti-social tendencies.

The new features provided for in these Acts were:

(a) A special branch (later renamed a Division) of the Department of Education to be known as the "Child Welfare Branch" was established. The Branch or Division consisted of the Superintendent of Child Welfare, who, under the control of the Minister and the Director of Education, was charged with the administration of the Act; a Deputy Superintendent; and such Welfare Officers, managers, etc., as might be required.

(b) Power was taken for the creation of Children's Courts.

(2) The Children's Court

The idea of treating children who misbehaved as "delinquents" rather than as offenders against the law arose in Illinois in 1899. This experiment in social welfare was followed in other States of America, and the principle was introduced into New Zealand in 1925.

There has been, and still is, much misunderstanding concerning the procedure in these Children's Courts and the duties of Welfare Officers. As some recommendations about to be made by this Committee could not be properly appreciated without a knowledge of the procedure of that Court, and the way in which Welfare Officers perform their duties, it is desirable to make the following brief explanation:

Under the Act of 1925 it is the parent and *not* the child, who is summoned to appear before the Children's Court. Section 13 (1) of the Act reads:

On the complaint of any constable or of any Child Welfare Officer that any child is a neglected, indigent, or delinquent child, or is not under proper control, or is living in an environment detrimental to its physical or moral well-being, any Justice may issue his summons addressed to any person having the custody of the child requiring him to appear before a Children's Court at a time to be named in the summons, *either with or without the child*, in order that the child may be dealt with in accordance with the provisions of this Act.

This new feature in our law did not displace the jurisdiction of Magistrates to deal with offences charged against young persons. Any doubt regarding the continuance of their powers was removed by the passing of the Child Welfare Amendment Act of 1927. All offences by children (except murder and manslaughter) are therefore still dealt with by a Magistrate, but in the Children's Court. In other words, it is not at present mandatory upon a parent to attend the Children's Court when a child is charged.

In practice it is frequently found that the parent comes to Court with a child who is charged with a breach of the law. This may be due to a family interest; it may be due to a direction by a Magistrate in some district that he will not deal with a child in the absence of the parent; it may be due to a misunderstanding of the law that, because a parent is summoned for having a delinquent child and may be required to bring the child with him, therefore when the child is summoned the parent must also attend.

This distinction between summoning the parent of a delinquent child to the Children's Court and bringing an offending child up on an offence can best be illustrated by what happened in the cases of carnal knowledge and indecent assault which were brought prominently to the notice of the public recently.

The offending boys were charged under those sections of the Crimes Act which prescribed maximum penalties of five or seven years imprisonment. In most cases convictions were recorded and the boys were admonished and discharged; in a few cases the charges were dismissed; in other cases the boys were committed to the care of the Superintendent or placed under the supervision of a Child Welfare Officer.

The girls, not having committed a breach of the Crimes Act or any other statute, could not be charged. Their parents were, in appropriate cases, summoned to Court upon the complaint that they had the custody of a "delinquent", or a child not under proper control.

That the above distinction is not merely a formal one is shown by the fact that an offending boy's name, and the decision of the Court regarding him, is always recorded in the *Police Gazette*. As the girl is not charged as an offender her name is not so recorded, even although (as shown in Section V (2) of this report) it may have been the misbehaviour of the girl which led the boy into the commission of the offence charged against him.

When a sophisticated girl entices a boy into the commission of an offence it is anomalous^[7] that his name should be recorded in the *Police Gazette* while the girl, who may be the real offender, is not charged and, even when the girl is committed to the care of the State, her offending is not recorded in the *Police Gazette*.

(3) Corporal Punishment Abolished

By the Statutes Amendment Act 1936 the power which formerly existed for the Court to order a whipping was abolished in so far as children are concerned. (The penalty of whipping was later abolished in all other cases by section 30 of the Crimes Amendment Act 1941.)

Representations have been made to this Committee that the abolition of corporal punishment as a deterrent may have led to an increase in sexual misbehaviour. It was pointed out that parents and school teachers may resort to physical chastisement where thought desirable, and it was suggested that a Magistrate should have power to order a whipping in suitable cases.

There is, however, a big difference between a parent or teacher himself punishing by the cane or strap soon after the offence, and a Magistrate ordering a beating to be inflicted by a complete stranger at a later date.

The Committee, therefore, does not recommend the restoration of corporal punishment. It merely notes the matter here as part of the history of the law relating to child welfare and to show that the representations on this point have been considered.

(4) Defects in the Act and its Application

Several matters have come to the notice of the Committee during its investigations which prompt it respectfully to point out to the Government that the present statutory provisions are out-moded and that the time has arrived for a complete redrafting of the statute to remove anomalies and to suit the needs of the times.

The terms of the order of reference scarcely require the Committee to make detailed recommendations. It should suffice to point out certain respects in which the Act itself might be improved and a new meaning given to "child welfare" which might go a long way towards reducing the amount of juvenile delinquency.

(a) "Child Welfare" a Misnomer

The preamble to the Act of 1925 describes the limited nature of its intention. It is:

An Act to make Better Provision with respect to the Maintenance, Care, and Control of Children who are specially under the Protection of the State; and to provide generally for the Protection and Training of Indigent, Neglected, or Delinquent Children.

In other words, the Act aimed at dealing with children *after they have become delinquents*. The new provisions for the welfare of children were grafted on to statutes which were designed for "neglected" and "criminal" children and for the establishment of "industrial schools". The Act did not purport to have regard for the welfare of children who *might* become delinquent. It did not contain any provisions for the doing of preventive work. That being so, it is not surprising to find that it operates in different ways in different districts. The Committee was impressed by the preventive work done in some districts, although the officers doing this work were unable to point to any provisions in the Act which required them to do it. In these circumstances it is not possible to blame any Child Welfare Officer for failing to do preventive work which, under the statute, he is not obliged, and, indeed, has no authority to perform.

(b) "Child Welfare" Merely a "Division"

The Superintendent of Child Welfare is under the control of the Minister of Education and the Director of Education. But his duties do not appear to be integrated with those of the Education Department. The work of the Division appears to be more associated with the police and the Courts than the Education Department. In former times "industrial schools" conveniently came under the Education Department. But nowadays, when very many of the children committed to the care of the State are boarded out among foster-parents, the work of the Child Welfare Division is more closely associated with that of "Justice" than "Education".

The establishment, a few years ago, of a Ministry of Social Welfare, and the urgent need for more preventive work to be done, suggest the possibility of better administration if "Child Welfare" were given an independent status under the control of the Ministry for Social Welfare.

(c) No Regulations Under the Act

The Acts of 1925 and 1927 made provision for the gazetting of regulations. In particular, clause 45 of the 1925 Act contemplated regulations (*inter alia*) "regulating the appointment and prescribing the duties of Child Welfare Officers". After the lapse of twenty-nine years those duties have still not been defined and gazetted.

Furthermore, "Child Welfare Officers" are, under section 6, "officers of the Public Service". It is astounding, therefore, to hear that, year by year, "Honorary Child Welfare Officers" are appointed. The Committee has been informed that this year 179 people were appointed or reappointed as "honorary" officers, although there is no statutory authority for their appointment and their duties are not prescribed.

The Superintendent, in his evidence regarding honorary Welfare Officers stated: "Some of them have nominal office only. They have the name and that is all it amounts to". Such a position cannot be regarded as satisfactory. If any of them do perform useful functions (as to which no opinion can be here expressed) at least their duties should be defined. It is very easy (as happened a few weeks ago) for a person to pose as a Child Welfare Officer in such circumstances as pertain at present.

(d) No Special Selection of Magistrates

The Act contemplates (section 27 of 1925 and section 16 of 1927) that Magistrates shall be specially appointed to the Children's Court. In practice, however, all Magistrates have been given jurisdiction to sit in the Children's Court. As a result, the practice and procedure of the Court varies throughout the Dominion.

(e) Separate Court Buildings Not Used

The Act also contemplated that, when a Children's Court was established, it should not be held in an ordinary Court building. There is a provision that if a Court has not been established in any district the proceedings should be in a room other than the ordinary Court Room.

Serious complaints were made to the Committee that some children in the Hutt cases had to remain in the precincts of the Magistrate's Court at Lower Hutt awaiting an opportunity for the cases as regards them to be called. After the children and parents had waited about for a long time most of these cases were adjourned till another date, when again much the same sort of thing happened. One special purpose of the Children's Court was defeated by the fact that the Children's Court in that city was held in the ordinary Court building.

(f) Should Proceedings be Open to the Press

There may be reasons why a Children's Court should be open to the public even although the publication of names is prohibited. Under section 30 press reporters may not attend a sitting of the Children's Court unless "specially permitted or required by the Court to be present". It has often happened that a series of offences has created considerable apprehension in the public mind. On investigation they have been found to be due to the work of a gang or to the influence of some definite adverse factor in the community. The public has a right to know how child offenders have been dealt with. The Committee does not recommend any alteration in the provision prohibiting the publication of the name of any child or of any name or particulars likely to lead to identification. Subject to this, it is desirable that reporters should be allowed to attend. The Court should not be a completely secret chamber, the decisions of which have to be gathered by rumour or by the seeking of information through interviews away from the Court.

(g) No Follow-up Procedure

When children are placed "under supervision" there is not any procedure whereby reports are submitted to the Court or other body concerning their welfare or their doings. Again, when children are committed to the care of the State or are under supervision as a result of delinquency they may lawfully be transferred from one institution to another or may be boarded out in foster-homes without any intimation being made to their own parents. If a child is boarded out in another district it may be enrolled at a school without the principal being given such information as might enable him to be of assistance in its reclamation.

The Committee feels that there should be some person or body apart from the departmental officers to whom a child could turn for help if it is unhappy in its new surroundings or feels that it is not being properly treated.

(5) Changes Proposed

In the foregoing subsections it was sought to show how it came about that the statute itself is not a completely satisfactory one. Some of its provisions were adapted from earlier statutes which dealt with "neglected" and "criminal" children, and "industrial schools".

In the course of the history of the legislation the age of a "child" has been progressively raised from 14 to 15, to 16, to 17, and to 18 years. Many of those dealt with would scorn to be regarded as "children" in the outside world, but they are glad to have the advantages accruing from being dealt with in a Children's Court.

It is pleasing to know that some officers of the Division are concentrating upon preventive work, but just where, and how such work is being done, and the effect of it cannot be measured.

The Committee makes the following recommendations for amendments to the existing legislation:

(a) The Creation of a New Offence under which children of either sex who are guilty of indecent behaviour may be charged as "delinquents" in lieu of the present procedure under which the boy must necessarily be charged and gazetted as a criminal while the girl is not charged at all.

A suitable amending clause would be:

Every child shall be deemed to be a delinquent child within the meaning of the Principal Act who—

(i) Being a male, carnally knows or attempts to carnally know any female child under the age of sixteen years;

- (ii) Being a female, incites or encourages a male to carnally know her and permits or suffers him to do so;
- (iii) Indecently assaults any other child.

It shall not be a defence to an information or complaint under this section that any child consented to the act.

(b) The Attendance of Parents at a Children's Court Should be Made Compulsory: There is not at present any provision whereby the parents of a child who commits an offence must attend Court. The provision in section 13 (1) that the Justice may require the person having the custody of a "delinquent" child to attend, with or without the child, does not meet present needs.

The Committee therefore recommends the acceptance by the legislature of the following new provision:

In every case in which a complaint or information is laid against any child, or against the parent or guardian of a child, under section 13 of the principal Act, the Justice before whom the said complaint or information is laid shall issue his summons to at least one of the parents of the said child or to the guardian or other person having the custody of such child to appear before the Children's Court with the said child.

(c) The Court Should Have Power to Make Orders Against the Parents of Offending or Delinquent Children: Suitable clauses in this connection submitted for the consideration of the Government are:

(1) Where a child is charged with any offence for the commission of which a fine or costs may be imposed, if the Court is of the opinion that the case would be best met by the imposition of a fine or costs, whether with or without any other punishment or remedy provided by the principal Act, the Court may order that the whole or any part of the fine or costs awarded to the informant or complainant be paid by any parent or guardian of such child unless the Court is satisfied that such parent or guardian has not condoned to the commission of the offence by neglecting to exercise due care and control of the child.

(2) In the case of a child charged with any offence the Court may, in addition to or without entering a conviction against the child, order that the parent or guardian give security for the good behaviour of such child in the future for such period as to the Court may appear just and expedient.

(3) The Court may also in its discretion make an order directing that the children's benefit or family benefit payable to the parent or guardian in respect of such child by the Social Security Commission be suspended until the parent or guardian gives the security required by the preceding subsection hereof for such future further or other period as the Court may think fit or until the Court is assured that the said parent or guardian is exercising due care and control of the child.

(4) A copy of any order made in directing the suspension of the payment of any children's benefit or family benefit shall immediately be forwarded by the Court to the Social Security Commission.

(5) The Court may suspend the coming into force of any such order or may at any time terminate the period of suspension or revoke any order made by it, whereupon the Commission of Social Security may pay to the parent or guardian all such benefits or allowances as would have been payable but for the order of suspension from the date of the said suspension or from such other date as the Court may think fair and just.

(6) Nothing herein shall be deemed to effect or limit the powers vested in the Social Security Commission by sections 62 and 72 of the Social Security Act 1938.

(7) An order under this section may be made against a parent or guardian who, having been required to attend at the Court with the said child, has failed to do so, but, save as aforesaid, no such order shall be made without giving the parent or guardian an opportunity of being heard.

(8) A parent or guardian may appeal to the Supreme Court against any order made under this section.

(d) When Any Child is Expelled From School Notification of the Fact Should Immediately be Given to the Child Welfare Division: The following draft clause expresses what the Committee has in mind:

When any child under the school leaving age has been expelled from school for any reason or any other child has been suspended or expelled for immoral behaviour, it shall be the duty of the principal or the governing body of

the school or other person (whichever has the power to suspend or expel), to inform the Superintendent of Child Welfare or the nearest Child Welfare Officer of the fact that the said child has been suspended or expelled from the school, and the said Superintendent or Child Welfare Officer shall immediately on receipt of such information take such action as may be proper or desirable in the interests of the said child.

(e) Whenever Any Child Has Been Found by the Court to Have Committed an Offence or to be a Delinquent Child or a Child Not Under Proper Control the Principal of the School Should be Informed: The suggested clause might read as follows:

Whenever any child has been found by the Court to have committed an offence or to be a delinquent child or a child not under proper control and is either a pupil of a school or is subsequently enrolled as a pupil it shall be the duty of the Superintendent of Child Welfare to inform the principal of such school of the nature of the offence and the circumstances which led to the delinquency in order that the principal may assist the said child and protect the other pupils of the school.

(f) That the Statute Should be Completely Redrafted and the Child Welfare Division Reorganized on an Autonomous Basis: In this redrafting and reorganization special regard should be had to:

(a) The precise duties expected of every Child Welfare Officer, whether he or she be a member of the Public Service or an "honorary Child Welfare Officer".

(b) The provision of Children's Court rooms away from the Magistrate's Court or the holding of sittings of the Children's Court on days when no other Court business is being conducted.

(c) The selection of Magistrates who are specially qualified to perform the duties required of a Justice of the Children's Court.

(d) The opening of proceedings to accredited representatives of the press, who should not, however, be permitted to publish the names of persons brought before the Court whether as offenders, parents, or witnesses, or any facts by which they may be identified.

(e) The taking of the opinion of a school principal on any recommendation affecting the future of one of his pupils.

(f) Provisions for a right of appeal from any decision of the Children's Court or from any decision of the Superintendent regarding any child.

XVII. Summary of Conclusions

1. Sexual immorality among juveniles has become a world-wide problem of increasing importance, but the great majority of the young people of this Dominion are healthy-minded and well-behaved.
2. As sexual immorality is generally clandestine, is often not criminal, and even when criminal may not be detected, there are not any statistics from which it can be shown whether, or to what extent, it has increased.
3. During recent years the pattern of sexual misbehaviour has changed: it has spread to younger groups; girls have become more precocious; immorality has been organized; the mental attitude of some boys and girls towards misconduct has altered; and there is evidence that homosexuality may be increasing.
4. The new pattern of juvenile immorality is uncertain in origin, insidious in growth, and has developed over a wide field.
5. Objectionable publications ought to be banned by establishing a system for the registration of distributors of certain printed matter. Urgent action is necessary so that publications now banned in other countries will not be dumped into this Dominion.
6. The absence of regulations necessary to make the Film Censor's recommendations effective deprives parents of the protection which the Legislature intended for them.
7. The possibility that children may hear radio programmes unsuitable for them calls for firmness and discretion on the part of parents and more care by the Broadcasting Service in arranging and timing programmes. Serials and recordings giving undue emphasis to crime or sex are not desirable, nor is the frequent repetition of recordings that are capable of misinterpretation, particularly in times like the present.
8. Advertisers should realize that the increasing emphasis on sex attraction is objectionable to some and, possibly, harmful to others.
9. Although television may not be introduced into New Zealand for some time, plans to cope with its effects on children should be made well in advance of its introduction.
10. There should be a closer bond between school and home. The system of visiting teachers should be expanded and as much liaison as possible established between them and public health nurses.
11. The evidence that the propinquity of boys and girls at co-educational schools contributed to sexual delinquency was not convincing.
12. The value of insisting upon all children remaining at school till they are 15 years of age should be further investigated. When the underlying cause for an application for exemption is misconduct, the exemption should only be granted subject to supervision by a Child Welfare Officer.
13. Whenever a pupil under the care or supervision of the Child Welfare Division is enrolled at a school the principal should be informed of any matters pertaining to the pupil which are within the knowledge of that Division. He should also be consulted as to any recommendation which it is proposed to make to the Court in respect of any of his pupils.
14. The school is not the proper place for fully instructing children about sex, although it may be a convenient place in which mothers and daughters together, fathers and sons together, or parents together, may listen to addresses or see appropriate films. This would help to break down some of the barriers of self-consciousness.
15. In the new housing settlements the younger age groups predominate. They are without the stabilizing influence of older people and established institutions.
16. The work of all organizations which aim at building character is warmly commended as they help to prevent children from becoming delinquent; but facilities for recreation and entertainment will not cure juvenile delinquency.

17. Liquor and gambling are symptomatic of some homes where there is child neglect. The Committee deprecates the growing practice of parents conniving at the consumption of liquor at young people's parties.

18. Tension in the household, separation of the parents, lack of training for parenthood, the absence of a parental sense of responsibility or poor discipline all help to create an unsatisfactory home environment; the child of such a home often feels unwanted or unloved. This unsatisfactory environment or feeling of being unloved is productive of much delinquency.

19. Nearly one-third of the delinquent children whose cases were considered came from homes where the mothers, possibly out of necessity, went out to work. Fathers themselves are also to blame when they neglect the opportunities available in the evenings or at the weekends to interest themselves in the welfare of their children.

20. The high wages paid to adolescents on leaving school are an important contributing factor especially when those youths have not been trained in the virtues of thrift and self-reliance.

21. In many of the cases investigated by the police the children have either been ignorant of the functions of sex or have too advanced a knowledge of its physical aspects. When, how, and by whom the information should be given is very important.

22. The present state of morals in the community has indicated the value of a religious faith, and of family religion. Encouragement should be given to the work of the New Zealand Council of Christian Education.

23. There has been a decline in certain aspects of family life because of a failure to appreciate the worth of religious and moral sanctions.

24. During the past forty years new concepts have entered into society. These concepts resulted from the unsettlement following two world wars. The changes were the increased use of contraceptives, the broadening of the divorce laws, an increase in pre-marital sexual relations, and the spread of new psychological ideas.

25. The Committee is unanimously of the opinion that adolescents should not buy or be in possession of contraceptives. There is, however, some difference of opinion as to how this decision could be made effective.

26. The state of the law regarding indecent conduct on the part of boys and girls operates very unfairly. Boys who admit this offence are charged in the Children's Court under sections of the Crimes Act for breach of which they are liable to terms of imprisonment of five to seven years. Their names and particulars of the offence are recorded in the *Police Gazette*. The girls (some of whom may have incited the boys to offend) cannot be charged; if they are brought before the Court at all, it is only when their parents are summoned for having delinquent children and their names are not gazetted.

27. The Child Welfare Act should be broadened to provide for the doing of preventive work. At present it provides only for the correction of children who have committed offences or who are delinquents. There are also grave weaknesses in this statute and in the whole procedure for dealing with offending and delinquent children.

XVIII. Recommendations

(1) Proposals for Legislation

(a) The definition of "obscene" and "indecent" in the statute law relating to printed and published matter should be enlarged so as to cover all productions which are harmful in that they place undue emphasis on sex, crime, or horror.

(b) All distributors of books, magazines, and periodical (other than newspapers and educational or scientific publications) should be required to register their names and the names of their various publications. If they offend against the proposed law regarding objectionable publications, their licences to produce or distribute should be cancelled.

(c) A new offence should be created whereunder boys and girls who are guilty of indecent conduct with one another should both be liable to be charged as delinquents in the Children's Court and the practice of recording the names of boys in the *Police Gazette* as having been summarily dealt with should cease.

(d) In all cases where children are summoned to Court their parents (if available) should be required to attend with them.

(e) The Court should have the power to require the parent or guardian of an offending or delinquent child to pay the fine or costs and to give security for the future good behaviour of the child unless the Court is satisfied that the conduct of the parent or guardian has not conduced to the child's wrong doing.

(f) The Court should also be given power to direct that the children's benefit or family benefit payable to any parent or guardian by the Social Security Commission be suspended until he gives the security required by the Court or for such further or other period as the Court may order. The material interests of the child should be preserved by enabling the Court to suspend the operation of the order, or to cancel it upon being satisfied that the parent or guardian has given the required security to exercise due care and control.

(g) Effect should be given to the recommendations regarding enrolment or expulsion of children as set out in Section XVI (5) (d) and (e) of this report.

(h) The Child Welfare Act should be completely recast in such a way as to remove the weaknesses indicated in this report and to suit modern needs. "Child welfare" should be given an autonomous status under the Minister of Social Welfare.

(2) Proposals for Administrative Action

The following outlines of administrative action are not dependent upon the amending of any Acts of Parliament such as were recommended above:

(a) Police Department

The training and duties of policewomen should be considered with a view to deciding the best method of dealing with girls involved in sexual offences.

(b) Department of Internal Affairs (Films)

To facilitate the practical working of film censorship steps should be taken to gazette the outstanding regulations empowered under the relevant Acts of 1934 and 1953.

(c) Broadcasting Service

It is suggested:

(i) That the service ensure that the concept "Crime must never pay" is more prominently featured in crime serials.

(ii) That a married woman be immediately appointed to the auditioning panel.

(d) Censoring Authorities

Any Departments concerned with censorship should maintain a liaison to produce as far as possible a uniform interpretation of public opinion and taste.

(e) Department of Education

(i) The Department of Education should discuss with the Department of Health the respective duties of public health nurses and visiting teachers to prevent overlapping and to ensure the best possible employment of these officers.

(ii) Following upon the conference outlined in the previous paragraph the appointment of additional visiting teachers should be accorded priority.

(iii) The Department should consider what type of officer is best suited to help with problem pupils in post-primary schools.

(iv) The Department should request that residences be set aside for some teachers in housing settlements.

(v) In areas where there is a lack of facilities for recreation and entertainment the Department should consider the possibility of making school grounds and buildings available to responsible organizations.

(f) Research into Juvenile Delinquency

A long-term project for the investigation of juvenile delinquency in all aspects should be undertaken.

(3) Parental Example

New laws, new regulations, and the prospect of stricter administration may help to allay the well-founded fears of many parents for the future of their children. It would, however, be a pity if parents were thereby led into any relaxation of their own efforts. Wise parenthood implies firm control and continual interest in the doings of sons and daughters. But what is most needed is that all people should, by right living and by the regularity of their own conduct, afford the best example for the conduct of the rising generation.

XIX. Appreciation

As a supplement to this report the Committee desires to place on record its thanks to all those who have assisted it in discharging its responsibilities.

The many organizations and witnesses who have expressed their views have been most helpful, and the Committee is also obliged to all those who have sent letters, books, and papers for consideration. The many press clippings of editorials, news articles, and letters to editors have enabled the Committee to obtain an understanding of public sentiment on various matters.

The heads of Government Departments have answered every inquiry for information which has been submitted to them.

The Public Service Commission has placed facilities at the disposal of the Committee and has released stenographers and typists from their ordinary duties to enable this report to be presented on the date fixed by the Committee early in its deliberations.

In particular, the Committee expresses its great appreciation of the manner in which Mr L.J. Greenberg has performed the secretarial duties. He has dealt with correspondence, and has shown a splendid sense of timing in arranging for the appearance of witnesses.

APPENDIX A

Table of Sexual Offences for Which Proceedings Were Taken in New Zealand

	1920	1925	1930	1935	1940	1941	1942	1943	1944	1945	1946	1947	1948	1949	1950	19
Rape and attempted rape	11	16	16	19	12	6	22	40	34	27	14	32	14	24	31	
Carnally knowing girls under 16	14	55	68	86	99	41	69	69	71	59	73	66	61	82	90	
Attempts to carnally know girls under 16	7	9	8	14	15	6	5	5	2	17	18	14	13	7	27	
Indecent assault: Females	63	98	107	122	153	113	171	105	134	112	104	147	164	153	149	1
Indecent assault: Males	12	47	38	46	103	104	118	68	61	119	89	109	110	86	82	

APPENDIX B

List of Witnesses, Submissions, and Order of Appearance

One hundred and forty-five (145) witnesses appeared before the Committee in Wellington, Christchurch, or Auckland, and 18 of these witnesses were recalled on one or more occasion.

(a) Witnesses

Witnesses are grouped as follows:

Government Officials—

Departmental Heads: Broadcasting, Education, Police.
Other Officers: Customs, Film Censor, Police (4), Superintendent
of Child Welfare 10

Educational Authorities—

New Zealand Council of Christian Education
New Zealand Council of Education Research
New Zealand Educational Institute (2)
Professor of Social Science
Director of Physical Education
Tutor, Adult Education
Director, Catholic Education
Child Welfare Officers (5)
Chairman, Board of Governors
Principals (9)
Inspectors (4)
Visiting Teacher
Federation of Parent Teachers Association 29

Welfare Organizations—

Religious—
Christian Endeavour Union
Methodist
Presbyterian (2)
Roman Catholic (6)
Salvation Army (8) 18
Other—
Boy Scouts (2)
Crichton Cobbers Club (2)
Girls' Life Brigade
Hutt Valley Youth Survey
Nursery Play Centres (3)
Orphanages (3)
Sea Cadets (2)
Youth Hostels (2)
Y.M.C.A. (3)
Y.W.C.A. (4) 23

Church Bodies—

Inter-Church Council on Public Affairs (2)	
Hutt Valley Ministers Fraternal (4)	
Baptist	
Church of England	
Methodist	
Presbyterian (6)	15

Women's Organizations

Anglican Mothers' Union (2)	
Catholic Women's League	
National Council of Women (2)	5

Commercial Interests—

Booksellers (3)	
Chemists' Guild	
Film Distributors and Exhibitors (7)	
Milk Bars (3)	
Newspaper Editor	15

Professional Societies—

Christchurch Psychological Society (4)	
New Zealand Paediatric Society	5

Civic Leaders—

Mayor, Lower Hutt	1
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Sporting Bodies—

Wellington Hockey Association	1
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Miscellaneous Groups—

Communist Party of New Zealand	
New Zealand Rationalists Association	2

Private Individuals 21

Total 145

(b) Submissions

Practically all the above witnesses, jointly or severally, provided written submissions, and some provided more than one submission. In all there were 83 written submissions from 77 witnesses or groups of witnesses.

In addition, 120 submissions were received from individuals or organizations that did not appear before the Committee. Many other persons wrote to the Committee, and a large number supplied samples of publications containing material considered harmful.

Submissions may be grouped as follows:

(1) Those supplied by the witnesses whose names are marked with an asterisk (*) in the list showing the order of appearance.

(2) Those supplied by the 120 other individuals and organizations listed below.

Anglican Provincial Youth Council (J.C. Cottrel, Secretary), Auckland.
Archibald, Jean K., Teacher's College, Ardmore.
Arnold, Miss E.S., Children's Editress, Nelson Evening Mail, Nelson.
Associated Booksellers of New Zealand (D.K. Carey, Secretary), Wellington.
Associated Churches of Christ in New Zealand (Religious Education Department), Christchurch.
Auckland Provincial Public Relations Office Inc. (George F. Gair), Auckland.

Bell, Gordon C., 6 Kohia Terrace, Auckland.
Bennett, L., Lower Hutt.
Blamires, Rev. E.O., 13 Lighthouse Road, Napier.
Brewerton, N.V., Box 2192, Auckland.
Brough, Miss Aileen, 68A Wrigley Street, Tauranga.
Burns, J., 575 New North Road, Kingsland.

Caldwell, C.L., 9 Market Road, Auckland.
Cane, Mrs C.M., 35 Waldegrave Street, Palmerston North.
Carrington, Hon. C.J., P.O. Box 36, Tauranga.
Catholic Youth Movement (Father Curnow), Christchurch.
Child Welfare Officer (A.L. Rounthwaite), Whangarei.
Child Welfare Officer (P. Goodwin),
Chiropractic Health Institute Inc., Auckland.
Christian and Co., Ltd., Devonport Road, Tauranga.
Clark, T.J., 10 Church Road, Templeton, Christchurch.
Clift, F.H. (Hon. Secretary, Wellington Headmasters' Association), Wellington.
Cosgriff, P.B., 69 Hinau Street, Riccarton, Christchurch.
Cousins, P.W., 4 Matai Road, Wellington.

de Lacy, T.J., Taihape.
Dewar, G.E., 65 Rhodes Street, Waimate.
Dobbie, Mary, 24 Patterson Street, Sandringham, Auckland.
Donovan-Lock, Mrs A., 103 Wrigley Street West, Tauranga.
Duffy, G., Hon. Secretary, Christchurch District Peace Council, 81 Gasson Street, Christchurch.
Duffy, J.A., 67 Wellesley Road, Napier.

Edgar, M.R., Kaukapakapa (North Waitemata Circuit of the Methodist Church), Waitemata.
Eisey, C.A., 400 South Road, Dunedin.
Emmett, John D., Waikuku Beach, North Canterbury.

Faith, Mrs L.C., President, Catholic Women's League, "Fairview", Te Horo.
Faram, Mrs T.C., 14 Portage Road East, Papatoetoe.
Fere, Dr M., 113 Seaview Road, New Brighton.
Feron, L.J. (and 32 other petitioners), No. 2 R.D., Governors Bay, Christchurch.
Flint, E.W., West Coast Road, Oratia.
Fottrell, C.P., 18 Devon Street, Wellington.
Frost, Mrs A., "Truth" (N.Z.) Ltd., Wakefield Street, Wellington.

Graaf, Th. L.D., Beach Road, Otumoetai.
Greenwood, Rev. F., 37 Charlotte Avenue, Wellington.
Gilberd, D., No. 4 R.D., Whangarei.
Gilbert, Miss G.M., 23 Reading Street, Wellington.

Hall, Miss B., 1A Apuka Street, Wellington.
Hansen, Harold, Orini.
Harris, E.L., 4 Riddiford Street, Wellington.

van Harskamp, J., 22 Lombard Street, Greymouth.
Hastings Housewives Union (Alva Hogg, Hon. Secretary), Hastings.

Jamieson, Miss C., National Council of Women, Manawatu Branch, 70 Albert Street, Palmerston North.
Jebson, Mrs E.D., President, Methodist Ladies Guild, St. Paul's, London Street, Hamilton.
Jessett, F.W., 5 London Terrace, Putaruru.
Joblin, A.E.R., Headmaster, Hokowhitu School, Palmerston North.
Jones, Ernest L., 1010 Taita Drive North, Lower Hutt.
Jones, P.H., 31 Jollie Street, Christchurch.

Kennedy, Mrs M., No. 4 R.D., Morrinsville.
Kidd, Mrs A.W., J.P., "Glenavon", Middlemarch.
Knight, Brian, Brian Knight Clinic Psch., 124 Symonds Street, Auckland.

Lovell, W.P., Taupiri.
Luekens, K.M., "Tuirangi", Auckland.

Mackie, Mrs H., 165 Grafton Road, Wellington.
Macky, Mrs V., 144 Mountain Road, Auckland.
Marsden, E.E., Box 150, Napier.
Martin, C.G., 39 Union Street, Foxton.
Martin, W.E., 7 Whitby Terrace (St. John Ambulance), Auckland.
Methodist Central Mission (Rev. W.E. Falkingham, Superintendent), Christchurch.
Michie, L.A., 28 Tautari Street, Auckland.
McAven, J.S., 164 Long Drive, Auckland.
McBride, Frances, 18 Gladstone Road, Auckland.
McCaw, Mrs M., 11 Seddon Street, Timaru.
McCool, Mrs M.M.T., Raukawa Road, Ashhurst.
McDonald, A.P., Headmaster, Shannon School, Shannon.
McIver, Mrs I., Westney Road (2), Mangere.
McLachlan, A.A., former Magistrate, 57 Brunswick Street, Lower Hutt.
McLean, O.G., 5 Thames Street, Hamilton.
McLevie, Rev. E.M., St. Barnabas' Vicarage, Wellington.

Neame, Mrs M.K., "Darwin", Maunganui Road, Mount Maunganui.
Norris, Mrs E., 60 Melbourne Road, Wellington.
North Canterbury Methodist Women's Guild Fellowship, Christchurch.
North Shore Ladies' Representative Committee (Miss R.L. Muskett), Auckland.
New Zealand Canoeing Association (D.J. Mason, President), Auckland.
New Zealand Libraries Association (H.W.B. Bacon, President), Wellington.
New Zealand National Party (Women's Division), Auckland.
New Zealand Bible Testimony, Box 555, Palmerston North.

Palmerston North Headmasters' Association (L.M. Morine), Palmerston North.
Poole, L., 5 Curran Street, Auckland.
Potts, Nora Cramond, 23 Towai Street, Auckland.
Public Opinion and Gallup Polls (N.Z.) Ltd., Auckland.

Raeston, K., 68 Fitzherbert Street, Petone.
Rallison, W., Post Office, Frankton.
Reid, Mrs, "Reidhaven", Arrowtown.
Ridder, E.H.C., Christchurch.

Salmond, W.R., Acting Session Clerk, Tasman Presbyterian Church, Upper Moutere.
Scherer, Sister L.A., 216 Great North Road, Auckland.
Seymour, Douglas, Box 79, Hamilton.

Senior, Gerard, Chaplain, R.N.Z.N., H.M.N.Z.S. *Black Prince*, Auckland.
Solway, R., 28 Opapa Street, Titahi Bay.

Taylor, Mrs G.E., 111 Upland Road, Wellington.
Taylor, Miss J., "Melody Cottage", 156 Barnard Street, Wellington.
Teasdel, W.J., 31 Waipapa Road, Wellington.
Thompson, R.J., 89 Owens Road, Epsom, Auckland.
Tole, J.G., 12 Seaview Road, Remuera, Auckland.
Trio Publications (C.R. Dunford), Christchurch.

Venoe, Miss J.C., Francis Street, Blenheim.

Wanganui Girls' College Board of Governors, Wanganui.
Waikato Justices of the Peace Association, Hamilton.
Ward, Rev. N., Miller Memorial Congregational Church. 9 May Avenue, Napier.
Warren, Rev. P.H., The Church of the Ascension, Auckland.
Wells, Miss E., 175 Long Drive, Auckland.
Wellington Diocesan Youth Council (Miss H. Sewell), Wellington.
Werren, Rev. J.S., South Auckland Methodist Church, Hamilton.
Western, Miss M., P.O. Box 382, Auckland.
White, A.W., Principal, Technical High School, Stratford.
Wilkes, T.G. (General Secretary, New Zealand National Party), Wellington.
Williment, F., Wellington.
Williams, G.T.P., 139 Eruera Street, Rotorua.
Women's Christian Temperance Union (Mrs H.N. Toomer, Dominion President), Wellington.

Y.M.C.A. New Building Campaign Committee (Mr J.C. Bonham), Auckland.
Younes, Mrs R.A., 4 Hackthorne Road, Christchurch.

(c) ORDER OF APPEARANCE OF WITNESSES

*Mr E.H. Compton, Commissioner of Police.

*Mr G.E. Peek, Superintendent of Child Welfare Division.

Mr F.T. Castle, President, Wellington Chemists' Guild.

*Senior Sergeant F.W. LeFort, Officer in Charge, Petone Police Station.

*Mr G.W. Parkyn, Director, New Zealand Council for Educational Research.

*Mr D.K.D. McGhie, Social Science Bursar, Chairman, Hutt Valley Youth Survey.

Mr E.W. Mills, Principal, Hutt Valley Memorial Technical College.

Dr C.E. Beeby, Director of Education.

*Mr E.S. Gale, Assistant Comptroller of Customs.

*Mr B.C. Penney, President, New Zealand Educational Institute.

Mr G.R. Ashbridge, Secretary, New Zealand Educational Institute.

*Mr J. Ferguson, District Child Welfare Officer, Wellington.

*Mr G. Mirams, Film Censor, Wellington.

Mr G. Briggs, National Secretary New Zealand Y.M.C.A.

Mr A.L. Lummis, Elbes Milk Bar, Lower Hutt.

Mr L.F. Elbe, Elbes Milk Bar, Lower Hutt.

Mr W.L. Ellingham, Elbes Milk Bar, Lower Hutt.

*Rev. R.S. Anderson, Presbyterian Church, Naenae.

Mr J.D. Murray, Presbyterian, Church, Naenae.

Mr M. Buist, Presbyterian Church, Naenae.

Mrs J.B. Christensen, Former member of the Senate Sub-committee to Investigate Juvenile Delinquency in United States of America.

*Mrs R. Wolfe, Private Citizen, Lower Hutt.

Mrs S. Smith, Private Citizen, Lower Hutt.

Mr W.B. Davy, Private Citizen, Lower Hutt.

*Father D.P. O'Neill, Director of Catholic Social Services.

*Miss E. Newton (Former Teacher), Wanganui.

*Miss H. Kirkwood, Post-primary Inspector of Schools.

Mr W. Yates, Director of Broadcasting.

*Mr K.G. Gibson, Commissioner of Boy Scouts' Association.

Mr R.E. Glensor, Dominion Secretary of Boy Scouts' Association.

*Mr H.T. Robinson, Private Citizen (Technician, Dominion Physical Laboratories).

*Mr R.A. Loe, General Manager, Gordon and Gotch Ltd.

*Mr J.K. Torbit, Private Citizen, Khandallah.

*Mrs Birchfield, Communist Party of New Zealand.

*Rev. M.A. McDowell, Hutt Valley Ministers Fraternal.

Rev. G.E. Dallard, Hutt Valley Ministers Fraternal.

Rev. C.W.R. Madill, Hutt Valley Ministers Fraternal.

Rev. Mr Hartford, Hutt Valley Ministers Fraternal.

*Mr F.S. Ramson, Principal, Hutt Valley High School.

Mr R.A. Usmar, New Zealand Motion Picture Exhibitors' Association.

Mr H. Taylor, New Zealand Motion Picture Exhibitors' Association.

Mr N. Hayward, New Zealand Motion Picture Exhibitors' Association.

Mr N.E. Wrighton, New Zealand Motion Picture Exhibitors' Association.

Miss C. Conway, Catholic Youth Movement.

*Father Fouhy, Catholic Youth Movement.

Mr T. Fox. Catholic Youth Movement.

Professor W.G. Minn, Chair of Social Science, Victoria University College.

Mrs A.M. Richardson } President and Programme Secretary, National
Miss A.M. Blakey } Y.W.C.A. of New Zealand.

*Mr T.H. Whitwell, Senior Inspector of Schools, Wellington.

*Miss R. Reilly, Visiting Teacher, Wellington Education Board.

*Rev. J. Grocott, New Zealand Inter-Church Council on Public Affairs and New Zealand Council of Christian Education.

Rev. D.M. Williams, New Zealand Inter-Church Council Public Questions Committee.

Rev. M.J. Savage, New Zealand Inter-Church Council Public Questions Committee.

*Mr. W. Olphert, Sea Cadets.

Mr. R. Sanders, Sea Cadets.

Miss J.W. Whitton, Former Police Woman.

*Rev. A.J. Johnson, Senior Youth Director, Methodist Church of New Zealand.

*Mr G.A. Pitkethley, General Secretary, Hutt Valley Y.M.C.A.

Mr H.J.M. Christie, Chairman, Youth Department, Hutt Valley Y.M.C.A.

Mr P. Dowse, Mayor of Lower Hutt.

*Superintendent D.R. Sugrue, In charge of Christchurch Police District.

Mr H.A. Adams, President, Christchurch Psychological Society.

Mr B.F. O'Connor, Secretary, Christchurch Psychological Society.

Mrs Young, Member, Christchurch Psychological Society.

Miss Saunders, Member, Christchurch Psychological Society.

*Mr T.C. Cutler, Vice-President, Youth Hostels Association.

Mr J.L. McKie, Secretary, Youth Hostels Association.

*Mr P.A. Smithells, Director, School of Physical Education, Otago University.

Mr J.C.H. Chapman, Farmer, Kurow.

*Rev. C.R. Harris, Methodist Minister, Riccarton.

*Mrs W. Averill, President, Young Members Department, Anglican Mothers' Union.

Miss M.J. Havelaar, Branch President, National Council of Women.

*Mrs W. Grant, President, Y.W.C.A., Christchurch.

*Mrs R.W. Lattimore, President, Catholic Women's League.

*Major H. Goffin, Divisional Commander, Salvation Army, Canterbury-Westland.

Captain E. Orsborne, Youth Director, Salvation Army, Canterbury-Westland.

*Mr J.R. O'Sullivan, District Child Welfare Officer, Christchurch.

Mrs M.E. Barrance, Child Welfare Officer, Christchurch.

*Mr J.F. Johnson, Senior Inspector of Schools, Canterbury.

*Rev. W.M. Hendrie, Youth Director, Presbyterian Church of New Zealand.

*Rev. T.C. Campbell, Superintendent, Presbyterian Social Services Association.

Mr J. Bruerton, Crichton Cobbers Club.

Mr J. McCracken, Crichton Cobbers Club.

Miss K.J. Scotter, Principal, Girls' Training School, Burwood.

*Mr W.H.E. Easterbrook-Smith, Senior Tutor Adult Education (Hutt Valley, Wairarapa).

Miss N.J. Clark, Principal, Wellington Girls' College.

*Mr K.A. Falconer, Secretary, Wellington Hockey Association.

*Commissioner Hoggard, Territorial Commander, Salvation Army.

Colonel B. Cook, Secretary, Salvation Army.

Major R. Usher, Salvation Army.

Brigadier B. Nicholson, Salvation Army.

Dr N.H. Gascoigne, Director, Catholic Education.

*Mrs H. Bullock, Anglican Mothers Union and National Council of Women.

Miss Forde, National Council of Women.

*Senior Superintendent P. Munro, In charge of Auckland Police District.

Mr S.L. Vaile, President, New Zealand Booksellers' Association.

*Miss G.M. Gebbie, Organizing Secretary, Girls' Life Brigade.

Detective D.J. Brewer, Police Department, Auckland.

*Mr G.C. Smith, District Child Welfare Officer, Auckland.

*Mr J. Nesbitt, Teacher, Te Papapa School.

Mr S.H. Craig, President, New Zealand Motion Picture Distributors' Association.

Mr Phil Maddock, General Manager, J. Arthur Rank Organization.

Mr A. McClure, Managing Director, Warner Bros. Ltd.

*Rev. F.R. Bolmor, Minister, Presbyterian Church, Mount Roskill.

*Mrs A.J. McClure, Mount Albert Baptist Church.

*Dr B. Friedlander, Dental Surgeon, Auckland.

Mr A.E. Campbell, Chief Inspector of Primary Schools, Department of Education, Wellington.

*Miss G.M. Rohan, Retired School Teacher, Auckland.

*Mr C.R. Bach, Teacher, Otahuhu College, Auckland.

*Mr E.V. Dumbleton, Managing Editor, Auckland *Star*.

*Mr A.G. Long, Nursery Play Centres Association.

*Mr J.C. Reid, Lecturer in English, Auckland University.

*Dr E.M. Blaiklock, Professor of Classics, Auckland University.

*Professor A.G. Davis, Dean of Faculty of Law, Auckland University.

*Mr M.F. Smith, National Secretary, Christian Endeavour Union.

*Mrs O. Bickerton, Liaison Officer, Auckland Nursery Play Centre Association.

Mr A. Gray, President, Auckland Nursery Play Centre Association.

Dr Elizabeth Hughes, Vice-President, New Zealand Paediatric Society, Auckland.

Miss C.R. Ashton, General Secretary, Y.W.C.A., Auckland.

Mr L. Adams, Onehunga.

Mr M.D. Nairn, Headmaster, Mount Albert Grammar School, Auckland.

*Mr P.T. Keane, Headmaster, Kowhai Intermediate School.

*Mr A.S.R. O'Halloran, President, New Zealand Rationalists Association.

*Mr W.A.T. Underwood, Principal, Hamilton East School.

*Dr R.J. Delargey, Catholic Youth Director.

*Father L.V. Downey, Director, Catholic Social Services.

*Mr C. Bennett, President, Auckland United Orphanages Council.

Mr R.S. Harrop, Hon. Secretary, Auckland United Orphanages Council.

Mr R.B. Giesen, Member, Auckland United Orphanages Council.

Mr A. Gifford, Retired Chemist, Auckland.

*Mr B.M. Kibblewhite, Former Vice-President, Teachers' Training College.

Mr A.S. Partridge, Vice-President, Auckland National Council Parents and Teachers' Association.

*Major H.G. Rogers, Matron, Salem House, Salvation Army.

Captain T. Smith, Matron, Bethany Hospital, Salvation Army, Auckland.

*Mr C.R. Shann, Engineer, Private Citizen, Auckland.

Mr J.A. Lee, Writer and Bookseller, Auckland.

*Rev. T.C. Somerville, Convener, Auckland Presbyterian Youth Committee.

Mr J.R. McClure, Lecturer, Teachers' Training College, Auckland.

*Mr H. Binstead, Retired Principal of the Manukau Intermediate School.

*Archdeacon A.E. Prebble, Vicar of St. Marks, Remuera.

*Mr T.C. Ward, Headmaster, Epuni Primary School, and President, Hutt Valley Headmasters' Association.

Mr N.J. Caldwell, Headmaster, Rata Street School, and ex-President of Hutt Valley Headmasters' Association.

*Mr I.B. Johnson, Headmaster, Naenae College, Lower Hutt.

Mr W.B. Dyer, Chairman of the Board of Governors, Naenae College, Lower Hutt.

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Transcriber's notes:

There were no footnotes in this text. Most [#] markers indicate spelling mistakes, the original spellings are listed below.

[1] was: intercourse

[2] was: recomendation

[3] handwritten addition to the text, which has been included, as it is fully in context.

[4] was: unobstrusively

[5] was: symtomatic

[6] was: psychological

[7] was: anomolous

*** END OF THE PROJECT GUTENBERG EBOOK REPORT OF THE
SPECIAL COMMITTEE ON MORAL DELINQUENCY IN CHILDREN
AND ADOLESCENTS ***

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